

Exhibit B

1 UNITED STATES DISTRICT COURT
2 FOR THE NORTHERN DISTRICT OF OHIO
3 WESTERN DIVISION

4 * * *

5
6 AMERICAN COLLOID COMPANY,

7 Plaintiff,

8
9 vs.

NO. 3:22-cv-01342

10 FIRE STAR ENERGY RESOURCES, LLC,

11 Defendant.

12 * * *

13
14
15 Videotaped Remote Deposition of
16 TIMOTHY M. JONES, a witness herein, called by
17 the plaintiff for examination pursuant to the
18 Rules of Civil Procedure, taken before me,
19 Patti Stachler, RMR, CRR, a Notary Public
20 within and for the Commonwealth of Kentucky, at
21 the Offices of Frost Brown Todd, 250 West Main
22 Street, Suite 2800, Lexington, Kentucky, on
23 July 17, 2023, at 9:38 a.m.

24 * * *

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* * *

1 THE VIDEOGRAPHER: We're on the
2 record. Today is July 17, 2023.

3 This is the video-recorded
4 deposition of Tim Jones in the case of American
5 Colloid Company versus Fire Star Energy
6 Resources, LLC. This case is pending in the
7 United States District Court for the Northern
8 District of Ohio; the Case Number is
9 3:22-CV-1342.

10 I am Robert Miller, the
11 videographer. Our court reporter today is
12 Patti Stachler.

13 At this time would counsel
14 identify themselves?

15 MS. RATHKE: Sure. Sarah Rathke and
16 Lauryn Durham for the plaintiff.

17 MR. HUNTER: Barry Hunter for the
18 defendant and for the witness.

19 THE VIDEOGRAPHER: You may swear the
20 witness.

21 TIMOTHY M. JONES
22 a witness herein, having been first remotely duly
23 sworn as hereinafter certified, was examined and
24 deposed as follows:

25 EXAMINATION

1 BY MS. RATHKE:

2 Q. All right. Thank you, Mr. Jones,
3 for joining me today for your deposition. Have
4 you ever had your deposition taken before?

5 A. I have not.

6 Q. Okay. My name is Sarah Rathke.
7 You can just call me Sarah if you want. I work
8 for the law firm of Squire Patton Boggs
9 representing ACC today in this action. So to
10 start, let me ask. Can I get a full name for
11 you; first, middle, and last?

12 A. Timothy Melvin Jones.

13 Q. And date of birth, sir.

14 A. [REDACTED]

15 Q. And resident -- sorry. Let's get
16 a business address.

17 A. Business address is P0 Box 23 --
18 2383, London, Kentucky.

19 Q. Okay. And that's a post office
20 box. What does that post office box correspond
21 to?

22 A. Our office. That's where all our
23 mail comes to. Mo-town.

24 Q. Does your business have a physical
25 location?

1 A. It does.

2 Q. Where is that, sir?

3 A. 1405 Master Street -- I'm sorry --
4 1405 Fifth Street, London, Kentucky.

5 Q. And what is at that street? Is it
6 an office, is it an actual mine?

7 A. No, it's an actual office
8 building.

9 Q. Okay. All right. And is it a
10 stand-alone office building, your own building?

11 A. No. There's other offices also in
12 there.

13 Q. Okay. And could I get a
14 residential address for you, sir?

15 A. 312 Keene Manor Circle,
16 Nicholasville, Kentucky.

17 Q. All right. And where are you
18 currently employed, sir?

19 A. Fire Star Energy, London,
20 Kentucky.

21 Q. And what's your position at the
22 company?

23 A. I would be a member.

24 Q. Does member mean owner?

25 A. Part owner, yes.

1 Q. All right. And what percentage of
2 the company do you own?

3 A. 50 percent.

4 Q. Okay. Are you the managing
5 member, sir?

6 A. Yes.

7 Q. All right. And who owns the other
8 50 percent of the company?

9 A. Duane Jones.

10 Q. So you described an ownership
11 title. Let me ask about operationally. Do you
12 have an operational title at Fire Star?

13 A. Basically -- basically I handle
14 all finances, all banking, pretty much that end
15 of it, accounting.

16 Q. And Duane Jones, the other owner,
17 that's your brother; is that right?

18 A. Yes.

19 Q. All right. And what sort of
20 operational title or tasks does he have?

21 A. He's basically at the mine site
22 every day, handles the day-to-day operations.

23 Q. Okay. Now, you say the mine site.
24 What do you mean by that?

25 A. Mine site would be the loadout.

1 Q. Okay. What's a loadout?

2 A. A loadout is where coal is brought
3 and processed and shipped from that location,
4 the loadout location.

5 Q. Okay. So is it accurate to say
6 that where your brother, Duane, works, there's
7 a mine and then there's an area where people
8 pick up; is that right?

9 A. There's not an actual mine at that
10 location. It's a processing facility.

11 Q. Okay. So does Fire Star have any
12 locations that it does work at other than the
13 loadout location that you just told me about
14 and the office location that you told me about?

15 A. No. That's it.

16 Q. Okay. Does Fire Star itself own
17 mines?

18 A. No. Fire Star itself does not own
19 mines.

20 Q. Okay. Where does it -- do you
21 consider Fire Star to be a broker of coal,
22 then, in that case?

23 A. Probably more of a broker, yes.

24 Q. All right. Now, in the 2021 and
25 2022 time frame, how many employees did Fire

1 Star have?

2 A. Fire Star, maybe four.

3 Q. And who are those?

4 A. Be myself, Duane Jones, part-time
5 secretary, and Dwayne Couch.

6 Q. Okay.

7 A. That wouldn't be full-time. That
8 would be during those -- during those time
9 periods.

10 Q. Okay. And Dwayne Couch, is that
11 D-w-a-y-n-e, Dwayne?

12 A. I'm not sure how he spells his
13 first name, but it is Dwayne.

14 Q. Okay. Is Couch C-o-u-c-h?

15 A. I think so, yes.

16 Q. Okay. Do folks call him Cotton?

17 A. Yes.

18 Q. Okay. And what is Mr. Couch's
19 position with the company?

20 A. Mainly goes from -- checks from
21 the jobs where the coal comes into the facility
22 I just told you about, the loadout, mainly what
23 he does, and oversees the, you know, operations
24 there.

25 Q. And does he own a truck or one or

1 more trucks that Fire Star sometimes uses to
2 deliver coal to customers?

3 A. Yes, I think he has one truck, to
4 my knowledge, yes.

5 Q. Okay. And has -- indeed, has Fire
6 Star employed Mr. Couch or his truck in order
7 to make deliveries of coal to customers?

8 A. Yes.

9 Q. Okay. And indeed, has Fire Star
10 utilized Mr. Couch's truck to make deliveries
11 to ACC's location in Archbold? That's
12 A-r-c-h-b-o-l-d.

13 A. Yes, I think so.

14 Q. Okay. And is Mr. Couch a W-2
15 employee?

16 A. W-2 employee. He is now. At one
17 time he was not. I'm not sure when that --
18 exactly when that began.

19 Q. Okay. Prior to the time when he
20 was a W-2 employee, was he a 1099 independent
21 contractor?

22 A. Yeah, trucker. Yeah.

23 Q. Okay.

24 A. What we call trucker.

25 Q. Now, where does the coal that --

1 in the 2021-2022 time frame, where did the coal
2 that Fire Star supplied to ACC at its Archbold
3 location, where did that come from ultimately?

4 A. Ultimately come from a mine that
5 they call -- went brain dead -- near Hazard.
6 Near Hazard, Kentucky.

7 Q. Is that the name of the town, near
8 Hazard?

9 A. Yeah, near the town. Yeah,
10 Hazard's just the community. Perry County
11 would be the county.

12 Q. All right.

13 A. Hazard's the biggest town in that
14 county.

15 Q. And who's the owner of that mine?

16 A. That mine would be Lipari Energy.

17 Q. Can you spell that, please?

18 A. L-a -- L-a-p-a-r-i [sic]. Or
19 sometimes they go under B&W Resources.

20 Q. Okay. BNW?

21 A. B&W.

22 Q. B&W. Got it. All right. Now, on
23 an occasion in 2021 and 2022 where ACC Archbold
24 would order coal from Fire Star, what would the
25 process be for, you know, getting that Fire

1 Star from the near Hazard mine?

2 A. What would be the process of
3 getting the coal to the processing facility?
4 It would be trucked from --

5 Q. Well --

6 A. It would be trucked from that mine
7 to the processing facility.

8 Q. All right. And what would be the
9 process of letting the folks at near Hazard
10 know that you needed to come and get some of
11 their coal?

12 MR. HUNTER: Hey, Sarah. He just
13 said near, like approximate to Hazard. It's just
14 Hazard.

15 MS. RATHKE: Yes. Oh, I see. Fair
16 enough.

17 MR. HUNTER: Yeah.

18 A. Yeah.

19 BY MS. RATHKE:

20 Q. I understand. All right. So what
21 would be the process of letting the folks at
22 Hazard or Lipari Energy know that you needed to
23 get coal for ACC?

24 A. Well, just where we've taken coal
25 off of them for years. We would basically pick

1 it up -- once it was mined, pick it up out of
2 the pit, bring it to Fire Star facility, and
3 process.

4 Q. Okay. Would you place a purchase
5 order in that instance?

6 A. Probably not with them. Like I
7 said, we've done business with them for years.
8 A lot of stuff's just done with a phone call,
9 but...

10 Q. And who would the phone call --
11 specifically who at Hazard, who would the phone
12 call be made to?

13 A. I'm not sure on that.

14 Q. Okay. Who -- who does --

15 A. I don't handle --

16 Q. Who makes those communications on
17 behalf of Fire Star?

18 A. That would be Duane Jones.

19 Q. Okay. So in instances where --
20 strike that.

21 In the 2021-2022 time frame when
22 Duane's made phone calls to get coal from Hazard
23 for the purpose of bringing them to Archbold, have
24 there ever been any instances where Hazard did not
25 have the full amount requested by Duane?

1 A. Sometimes normal course of
2 business, you've got -- when you're mining
3 coal, you have circumstances with weather where
4 it's just non -- it's not going to happen
5 whether you're in mud, you're in water, things
6 like that nature; just regular course of
7 business where it's just not always mineable
8 every day or haulable.

9 Q. Okay. Any -- anything other than
10 water that would cause you to not get the full
11 amount that you were asking for?

12 A. Or you could have -- you could
13 have mine shutdowns, you could have --
14 sometimes inspectors will come in and shut them
15 down for a day or they take -- they have so
16 many days a year they have to do certain
17 inspections where you're not able to actually
18 haul coal or load coal, those type things.

19 Q. All right. And in 2021 to 2022,
20 were you using coal from the Hazard mine to
21 supply any of Fire Star's customers other than
22 ACC?

23 A. No. Pretty much -- pretty much
24 just for ACC, to my knowledge.

25 Q. All right. Now, the pricing that

1 Fire Star paid to Hazard, was that fixed or
2 variable during the period of 2021 to 2022?

3 A. No, everything's generally fixed
4 for a period of time.

5 Q. Okay. Was it, in fact, fixed for
6 those two years?

7 A. I would assume so.

8 Q. Sorry. Could you repeat that?

9 A. I would think so.

10 Q. Okay. What was the fixed price of
11 the Hazard coal that was used to supply to ACC?
12 What was the Hazard fixed price in 2021-2022?

13 A. I'm not for sure of that number.

14 Q. Was it less or more -- well,
15 presume it was less than the fixed price
16 between Fire Star and ACC, which was 118.50;
17 fair to say?

18 A. That would be -- 118.50 would be
19 the delivered price trucked all the way to ACC.

20 Q. Right.

21 A. Is that what you're saying?

22 Q. Yes.

23 A. Yeah. I assume -- yeah, it would
24 be less than that. Yeah.

25 Q. All right. So Duane calls up

1 somebody at Hazard to get coal. How, then, is
2 it delivered? Who arranges the transportation?

3 A. Different ways. Either we would
4 arrange it or they would deliver it themselves.

5 Q. Okay. What determines that?

6 A. Just truck availability.

7 Q. And when you have to -- when Fire
8 Star has to arrange transportation whether for
9 ACC or any of its other customers, how does
10 it -- how does it do that? Does it have normal
11 truckers or trucking companies with whom it
12 works?

13 A. That's correct.

14 Q. Okay. About how many companies or
15 truckers?

16 A. A lot of single individual
17 truckers, so your -- sometimes you call one and
18 say get ahold of three of your buddies and haul
19 coal tomorrow, how that works.

20 Q. Okay. And how long has Mr. Couch
21 worked for Fire Star in a 1099 or a W-2
22 capacity?

23 A. Probably -- even as a trucker?
24 Trucker -- you're saying as a trucker or as an
25 employee?

1 Q. Sure. Okay.

2 A. As of both, probably four years,
3 five years.

4 Q. Okay. And how about just as an
5 employee?

6 A. Employee, not that long. Maybe
7 two years, year and a half.

8 Q. All right. Did he come in during
9 the ACC 2021-2022 contract?

10 A. Probably late '21, I'm thinking.

11 Q. And since Mr. Couch has worked for
12 the company, has he been a person responsible
13 for arranging orders and deliveries as between
14 ACC and Fire Star?

15 A. No. That would be Duane as far as
16 basically -- yeah, ACC would let us know on
17 a -- basically a weekly basis what they needed
18 for coal.

19 MR. HUNTER: When you say Duane, your
20 brother?

21 A. Right, correct. Duane Jones,
22 correct.

23 BY MS. RATHKE:

24 Q. Oh, gotcha. Is Fire Star a
25 producer of coal in any respect?

1 A. No. As far as we're not producing
2 anything ourselves, what you say a producer.

3 Q. Okay. Has that always been the
4 case?

5 A. Yes.

6 Q. All right. And how long has Fire
7 Star been in business?

8 A. Fire Star Energy, since about
9 2015, I think.

10 Q. And have you been the owner the
11 whole time, or did you buy it from somebody?

12 A. No. Been the owner.

13 Q. All right. And how long has -- to
14 your understanding, has Fire Star been doing
15 business with ACC?

16 A. At least that -- pretty much at
17 least that long. Probably ten years, I guess,
18 maybe longer.

19 Q. And how long has Fire Star been
20 supplying to the Archbold plant of ACC?

21 A. The Archbold plant, we shipped it
22 for a few years through a broker, and then that
23 broker passed away, and then we continued
24 several years shipping it direct.

25 Q. All right. Since about what point

1 in time have you been shipping direct?

2 A. Probably since -- I'm thinking
3 since 2016, '15, '17, somewhere through there.

4 Q. And how about through a broker?

5 A. Through a broker, probably for
6 another four or five years.

7 Q. Okay. Before 2015 or 2016, do you
8 mean?

9 A. Yeah, we might have did that
10 through a different company, but as far as
11 through Fire Star, it would have been about
12 '15.

13 Q. Okay. So before Fire Star was
14 formed in approximately 2015, did you have
15 another company that supplied coal to
16 customers?

17 A. Yes. Basically the same, just,
18 yeah, separate entity.

19 Q. Okay. What was that called?

20 A. One's called Fire Star Energy, the
21 other one's called Fire Star Energy Resources.

22 Q. Okay. What's the reason for the
23 change in corporate entity or structure or
24 name?

25 A. Really no reason. Just certain

1 places, they wanted dual bids or they want a
2 different setup in the corporate structure, so
3 we put it up, you know, a different way.

4 Q. Okay. And what's the name of the
5 broker who passed away? I should have asked
6 that.

7 A. Don Cane. I think it was called
8 C&C Chemical.

9 Q. Okay.

10 (Clarification by the reporter.)

11 THE WITNESS: C&C Chemical.

12 BY MS. RATHKE:

13 Q. Thank you. Yeah, like C?

14 A. C, yeah.

15 Q. Okay. Got it.

16 A. And he had been shipping there,
17 yeah, forever, 20 years.

18 Q. Okay. Now, your personal
19 relationships with folks at ACC, who do -- who
20 do you know or who have you worked with?

21 A. As far as know-know, Neil Miller,
22 I met him one time. Mike Wagner, I've never
23 met; I've talked to. Aric Wentz, I've never
24 met him, but talked to him on the phone.
25 Basically it. (Indecipherable.)

1 (Overlapping speakers.)

2 (Clarification by the reporter.)

3 THE WITNESS: Last name was
4 Dorothy Dreher. She's the accounts payable
5 from ACC. I talk to her quite a bit.

6 BY MS. RATHKE:

7 Q. All right. And that's
8 D-r-e-h-e-r?

9 A. Say that again. I'm sorry.

10 Q. Dreher is D-r-e-h-e-r; is that
11 correct?

12 A. I assume so. D-r-e-y-h-e-r [sic],
13 I think so.

14 Q. All right. And how long have you
15 done business with Neil Miller?

16 A. Neil was -- probably been at the
17 plant -- I want to say his name was Steve was
18 there for years. He retired. And Neil been
19 there, I think, for maybe five years or
20 something like that.

21 Q. Okay. And when ACC is placing
22 orders with Fire Star for coal, are you the
23 person to whom they would principally speak, or
24 is that your brother, Duane?

25 A. Yeah, they would principally speak

1 to Duane.

2 Q. Okay. What have you done to
3 become knowledgeable about the discussions that
4 Duane has had with people at ACC placing orders
5 for coal from Fire Star?

6 A. Yeah, I've reviewed that with him,
7 talked with -- went over things for several
8 hours.

9 Q. Okay. So what did you learn about
10 your brother, Duane's, conversations with ACC
11 when they would place orders?

12 A. Originally, you know, like I said,
13 a few years ago it was Neil Miller placing the
14 orders, and then it went to -- Neil was
15 basically told not to contact us, that they --
16 all the information would come through a Mike
17 Wagner, who just, I guess, started with ACC in
18 about beginning of '21. And that was kind of,
19 be honest with you, difficult there. He was
20 here or there or -- we normally went about our
21 normal -- our normal allotment.

22 Q. I'm sorry. Explain by -- what you
23 mean by the last thing that you said, that's
24 how we go about dividing our normal allotment,
25 if that's, in fact, what you said.

1 A. No, I said --

2 Q. What do you mean?

3 A. Yeah, not dividing our normal
4 allotment. We continued to ship, as we had in
5 the past for several years, the five to six
6 loads a week to ACC there in Archbold.

7 Q. Okay. Now, fair to say that
8 orders and deliveries weren't established
9 solely by telephone; eventually they were
10 papered up through purchase orders and invoices
11 and the like, correct?

12 A. Yeah, eventually. A lot of
13 times -- a lot of times, we had already shipped
14 the coal before we'd ever get a purchase order
15 from ACC. That come from a different
16 department. So those were always kind of --
17 not always. A lot of times they were after the
18 fact, and those would also -- those purchase
19 orders always say Neil would contact you with
20 what tonnage that he needs for the plant.

21 Q. Okay. And it's the case, correct,
22 that Fire Star would make deliveries to
23 Archbold, Archbold would weigh it, would
24 transmit those weights back to Fire Star, and
25 Fire Star would invoice accordingly; fair?

1 A. That's correct.

2 Q. All right. Annual revenues in the
3 2021 to 2022 time frame, how -- in terms of
4 revenues or sales to customers, what was Fire
5 Star's, you know, annual sales or revenue
6 numbers during that time frame?

7 A. For '21?

8 Q. Sure, let's start there.

9 A. 50 million.

10 Q. And how about 2022?

11 (Clarification by the reporter.)

12 THE WITNESS: 50, five-zero.

13 BY MS. RATHKE:

14 Q. Okay. 50, five-zero, million in
15 2021. How about 2022?

16 A. '22 revenues, I believe, probably
17 70 million.

18 Q. And how much of that is profit
19 typically?

20 A. Not a whole lot, to be honest with
21 you. Usually less than two percent.

22 Q. Okay. In that time frame, was --
23 were other customers besides ACC's Archbold
24 plant, were they on fixed-price long-term
25 contracts?

1 A. Yes. We had contracts, yes.

2 Q. Okay.

3 A. Were -- yeah, were set.

4 Q. And were some of AC -- sorry.

5 Were some of Fire Star's customers during that
6 time frame, you know, purchasing on the spot
7 market?

8 A. Most of -- you had some
9 customers -- customers out there that were
10 purchasing on the spot market. Most of our --
11 most of ours was in contracts with a set price.

12 Q. Okay. And as to ACC -- the
13 product being delivered to ACC at the Archbold
14 facility that came from Hazard, Kentucky, why
15 was that coal supply not used to supply, you
16 know, other Fire Star customers? Is there
17 something unique or special about it?

18 A. It's different quality.

19 Q. Okay. And specifically what do
20 you mean by that?

21 A. The quality meaning ash, sulfur,
22 BTU.

23 Q. And is -- are any one of those
24 quality parameters more relevant to the
25 uniqueness of the ACC Archbold requirements, or

1 just -- that just happens to be where all of
2 the required specifications match up?

3 A. Yeah, their requirements is a
4 lower ash and, of course, a low sulfur.

5 Q. How many -- in the 2021-2022 time
6 frame, how many other mines did Fire Star get
7 coal from for its customers?

8 A. We did have other mines, but it
9 was different quality.

10 Q. Okay. How many?

11 A. Probably five.

12 Q. And let's just say hypothetically
13 if, you know, ACC Archbold had for some reason
14 needed, I don't know, double -- let's say
15 triple its requirements for coal, would you --
16 do you think you would have been able to obtain
17 that amount of coal from the Kentucky plant
18 from which it came?

19 A. Probably not. Not triple.

20 Q. Okay. What were the production
21 constraints, if I can use that term, on the
22 Hazard, Kentucky plant that you're aware of?

23 A. I'm not aware of any constraints.
24 That's not -- you know, I'm not in their
25 day-to-day operations.

1 Q. All right. Why don't you think
2 you'd be able to get triple, let's say, the
3 orders -- triple ACC's typical orders?

4 A. Different variations. They
5 probably already sold out. You know, generally
6 people are pretty much sold out. So you go
7 ahead and book out their production.

8 Q. All right. And you said typically
9 people would pretty much be sold out. What
10 does that mean?

11 A. Meaning, you know, they've
12 already -- they're going to produce so many
13 tons and they've already got it sold, their
14 production sold out.

15 Q. Okay. So fair to say that that
16 mine at Hazard, that has other customers, just
17 not necessarily other Fire Star customers?

18 A. I'm not for sure. I have no idea
19 what their -- what their business is.

20 Q. Well, I take you to say that
21 that's why you said they -- that they allocate
22 their production at certain times. Is that
23 what you said?

24 A. No. I didn't say they allocated
25 their production certain times, no.

1 Q. They set their production; is that
2 fair?

3 A. Well, they'll attempt to set a
4 production rate, yes.

5 Q. All right. So in light of that,
6 what does Fire Star need to do to make sure
7 that its customers -- or I guess in this case
8 just one customer, Fire Star -- or, sorry,
9 ACC -- what does Fire Star need to do to make
10 sure that ACC's orders, requirements are
11 included in that production?

12 A. Say that again.

13 Q. Yeah. What does Fire Star have to
14 do with regard to the Hazard mine to make sure
15 that ACC's requirements are included in the
16 mine's production schedule?

17 A. Right. I mean, it has been for
18 years. So it's just a...

19 Q. I'm not sure I understand that.

20 A. So they'd know -- oh, I'm sorry --
21 had no -- yeah, as far as -- had no doubt they
22 could produce just a small amount of tons, so
23 pretty sure they could produce what was needed
24 for the Archbold location.

25 THE WITNESS: Yeah.

1 MR. HUNTER: Sorry.

2 BY MS. RATHKE:

3 Q. And do fluctuations in coal prices
4 impact Fire Star's business?

5 A. Did fluctuations -- say that
6 again.

7 Q. Yeah. Do fluctuations in coal
8 prices, do those affect your business?

9 A. I assume they, yeah, affect our
10 business, would affect anybody's business.

11 Q. Okay. Tell me how.

12 A. As far as how it would affect our
13 business? Not only coal prices, but the fuel
14 prices, mining -- mining prices, explosive
15 prices, everything.

16 Q. And are there any particular
17 indexes, like energy indexes, coal indexes,
18 anything that you track to see what the trends
19 are in coal prices?

20 A. Yeah, everybody -- you can look at
21 the EEI.

22 Q. Say what that is again slowly.

23 A. Look at the energy department,
24 they'll have a daily website that tells you
25 what the trending of coal is.

1 Q. Okay. And what's that called?

2 Did you say EEI?

3 A. No. The energy department, EIA.
4 EIA.

5 Q. Got it. All right. Do you
6 presently own any other companies other than
7 Fire Star?

8 A. As far as me myself, no. That's
9 basically it.

10 Q. Okay. Now, besides Archbold, has
11 Fire Star supplied to other ACC plants?

12 A. Not to my knowledge.

13 Q. Has it ever pitched ACC to supply
14 to its other plants?

15 A. No, not really. When Mike Wagner
16 got hired, he was literally calling me at 9:00
17 at night wanting, you know, could we ship --
18 what's our price into this plant, that plant,
19 and it just wasn't -- never was feasible for us
20 to do that.

21 Q. And why is that?

22 A. Well, a lot of it had to do with
23 logistics.

24 Q. Specifically what do you mean by
25 that?

1 A. Logistics as far as a way to get
2 there; you had to be barged or railed or
3 trucked or somewhere where it wasn't feasible
4 for us to do anything like that.

5 Q. Okay. Archbold is delivered
6 exclusively by truck, though, correct?

7 A. That's correct, yes.

8 Q. Okay. And, I'm sorry, what's the
9 name of your part-time secretary?

10 A. Shannon Asher.

11 Q. How do you spell Asher?

12 A. A-s-h-e-r.

13 Q. Okay.

14 MR. HUNTER: Sarah, can you hold one
15 second? I just want to ask him something.

16 A. Yeah, that's what I forgot about.
17 We did deliver at one time to the Chattanooga
18 plant.

19 BY MS. RATHKE:

20 Q. And what caused you to recall that
21 just now?

22 MR. HUNTER: I told him.

23 A. Yeah, he reminded me. We trucked
24 to Chattanooga plant down in Chattanooga.

25 BY MS. RATHKE:

1 Q. And when did that happen?

2 A. I think that was '21.

3 Q. For what period of time?

4 A. Well, I think we actually shipped
5 it in '20 and part of '21.

6 Q. What kind of coal?

7 A. Their spec was a -- basically a --
8 same type coal, less than one sulfur.

9 Q. And size?

10 A. Size was a two-by-one, same thing
11 as Archbold's, if I remember correctly.

12 Q. Okay. Now, how do you communicate
13 with your employees principally?

14 A. By -- pretty much there by phone.

15 Q. Ever communicate by text?

16 A. No, not really.

17 Q. Who's your cell provider?

18 A. Verizon.

19 Q. What's your cell number?

20 A. Mine's 859-221-7037.

21 Q. All right. And does the -- does
22 your office have a phone number?

23 A. It does.

24 Q. What's that?

25 A. I have to look and see what it is.

1 I don't know what it is off the top of my head.
2 I only know my own phone number. I press that?
3 606 -- area code 606-877-0075.

4 Q. And do you principally use your
5 cell to communicate with the other Fire Star
6 employees or office number?

7 A. Either/or.

8 Q. Okay. Where physically -- when
9 you're working, where physically do you work
10 out of?

11 A. Most of the time I'm on the road
12 or in -- there around the facility.

13 Q. And the facility being the one --
14 does that mean your office?

15 A. Manchester, Kentucky.

16 (Clarification by the reporter.)

17 THE WITNESS: Facility in
18 Manchester, yes, loadout.

19 BY MS. RATHKE:

20 Q. Do you recall an occasion in March
21 2022 when Fire Star imposed a fuel surcharge on
22 ACC's Archbold orders?

23 A. I do recall. I don't remember
24 surely imposing it. I talked to Mike Wagner
25 and told him fuel had gone up nationwide, known

1 thing, and, you know, is there a way we could
2 get a fuel surcharge on our haul rate to
3 Archbold. And he said he would check into it,
4 they were getting -- they were having to pay
5 other fuel charges on everything else,
6 everybody was doing that, they understood. And
7 he asked me to email him something. I did
8 email him something on that according to what
9 the rate would be according to, you know, the
10 new numbers on fuel.

11 Q. Okay. Let me ask you some
12 questions about -- they're designed to kind of
13 walk through the chronology of this case, but
14 also to ask about the ordering, delivering, you
15 know, protocol and process as between Fire Star
16 and Archbold. So hold up. Let's see here.

17 All right. This is where the
18 documents will come in, and it might be a
19 little cumbersome, so bear with me.

20 (Exhibit 1 was marked
21 for identification.)

22 BY MS. RATHKE:

23 All right. Oh, right. Your Exhibit
24 Share isn't working, so I got to display this,
25 right?

1 All right. Do you see what's been
2 marked on your screen as Exhibit 1 to your
3 deposition?

4 A. I see it. It's not real clear to
5 me, to be honest with you.

6 Q. All right. Should I make it
7 bigger? How's that?

8 A. There you go. There you go.

9 Q. All right. Great. Okay. I think
10 we've mastered this.

11 All right. Now, I'm just -- I'm
12 sitting with Exhibit 1, which is -- do you
13 agree that Exhibit 1 is a January 5th, 2021
14 purchase order from ACC to Fire Star?

15 A. Yeah. Can you roll it down some?
16 I can just see the top quarter of the page.
17 There you go.

18 Q. I sure can. Yeah, I sure can.

19 A. Yeah, that's the purchase order
20 from them. Those -- yeah, we had those
21 purchase orders, but they weren't really, you
22 know -- they're more of a form of a purchase
23 order coming back to us or a piece of paper
24 coming back to us for the ability to invoice
25 them.

1 Q. Right.

2 A. That number on top. The number on
3 the top.

4 Q. All right. So in this case this
5 is a January 5, 20 -- in this case, Exhibit 1
6 is a January 5, 2021 dated purchase order from
7 ACC to Fire Star, correct?

8 A. I see that date, yes.

9 Q. All right. And the quantity
10 indicated is 600 tons of coal, correct, down
11 here?

12 A. Yes, I see that.

13 Q. All right. And it indicates
14 delivery is within, you know, the first 15 days
15 of January; fair enough?

16 A. Says regular, and it also says,
17 Neil will let Duane know how many loads we can
18 accept each week.

19 Q. Fair enough. All right. And what
20 would happen, how would Neil let Duane know
21 that?

22 A. Well, it actually, like I said,
23 turned into Mike Wagner. I think Mike Wagner
24 was basically the one having to do the calling
25 because Neil had been told not to talk to us,

1 from my understanding.

2 Q. Okay. And how would that
3 communication occur?

4 A. I assume he would call him.

5 Q. Who would call whom?

6 A. Mike Wagner would call Duane
7 Jones.

8 Q. Okay. All right. So we've got a
9 purchase order dated January 5. Let me --

10 A. A lot of times, those were -- a
11 lot of times, those were postdated. I might
12 not get that till January the 20th or
13 something, you know.

14 Q. Okay.

15 A. As far as actually seeing it --

16 Q. All right. So for each --

17 A. -- for the day.

18 Q. For each purchase order, is it
19 fair that you and a gal named Rachel,
20 R-a-c-h-e-l, Perkins would have a communication
21 over email about exactly how much was shipped
22 pursuant to each purchase order?

23 A. Yeah. We would ship, and then she
24 would send me back the weights that were --
25 that would coincide with the shipments.

1 Q. Okay.

2 A. And then --

3 Q. And then --

4 (Overlapping speakers.)

5 (Clarification by the reporter.)

6 THE WITNESS: Yes. I said Rachel
7 would send me back the corresponding
8 destination weights, the Archbold weights, with
9 the shipments, and then this would come at some
10 point in time for a purchase order to attach to
11 it, a number.

12 BY MS. RATHKE:

13 Q. All right. So you see that what's
14 been marked as Exhibit 1 -- and I just say this
15 for continuity so that we can talk about the
16 corresponding documents -- this is, you know,
17 purchase order dash one; fair to say?

18 A. Yes, dash one.

19 Q. Okay. Hold up. So for this
20 purchase order -- all right. For this purchase
21 order, I'm going to show you Ms. Perkins'
22 email, and I'm going to make it bigger.

23 (Exhibit 2 was marked
24 for identification.)

25 BY MS. RATHKE:

1 Q. All right. Do you see on your
2 screen what's been marked as Exhibit 2 to your
3 deposition?

4 A. Yeah. If you could roll it, roll
5 it down.

6 Q. Down?

7 A. Yeah, roll down. I'm sorry. Roll
8 up.

9 Q. Okay.

10 A. Roll up.

11 Q. Got it. All right. Do you see
12 that what's been marked as Exhibit 2 to your
13 deposition is Rachel Perkins' email to you
14 copying Mr. Miller with a subject matter the
15 same as the ACC purchase number?

16 A. I assume it's the same number. I
17 don't remember it, but, yeah, I see that.

18 Q. Remember we talked about the dash
19 one?

20 A. Yes.

21 Q. Okay. And this is also the dash
22 one; fair?

23 A. It says dash one, yes.

24 Q. All right. And she indicates
25 delivery dates between January 4, 2021 and

1 January 13, 2021.

2 Do you see that?

3 A. Yes.

4 Q. Okay. And that's got the final
5 weight of 368 pounds point 61; fair to say?

6 A. That's tons. 368.61 tons.

7 Q. Of course. I apologize. Right.
8 Okay. So based on this tonnage number, I take
9 it that Fire Star would then introduce an
10 invoice, correct?

11 A. Yes. She -- yes, for that amount,
12 correct.

13 Q. Okay. So let me -- let me get the
14 corresponding invoice. But let me just
15 emphasize that the delivery dates here are
16 between January 4 and January 13. All right.

17 (Exhibit 3 was marked
18 for identification.)

19 BY MS. RATHKE:

20 Q. All right. And can you see on
21 your screen what's been marked as Exhibit 3 to
22 your deposition?

23 A. Yeah. If you could make it
24 larger, please.

25 Q. I can. Exhibit Number 3. See

1 that?

2 A. Yes.

3 Q. Okay. And do you see that what's
4 been marked as Exhibit 3 to your deposition is
5 a Fire Star invoice pertaining to ACC purchase
6 order dash one?

7 Do you see that?

8 A. Yes.

9 Q. All right. And do you see that it
10 corresponds -- well, strike that.

11 All right. So being as
12 Ms. Perkins -- do you see her email now,
13 Exhibit 2?

14 A. Yes.

15 Q. Okay. Being that Exhibit 2,
16 Ms. Perkins' email, relates to deliveries
17 between January 5 and January 13, my question
18 is with regard to -- let's see -- with regard
19 to Exhibit 3, the Fire Star invoice, would the
20 invoice date or the ship date, that would be
21 the date of the first delivery within purchase
22 order dash one and Ms. Rachel's -- Ms. Perkins'
23 email, correct?

24 A. Well, she's showing the -- she's
25 actually showing the -- yeah, there's a

1 difference between the ship date and the
2 delivery date.

3 Q. Okay. I see what you're saying.
4 So I think you're saying that Ms. Perkins'
5 email in Exhibit 22 [sic], these dates are
6 delivery dates, correct?

7 A. As far as hers, those are -- those
8 may be the day they received it. I'm not sure
9 what those dates are.

10 Q. Okay.

11 A. What they're corresponding with.

12 Q. But in Fire Star's invoice,
13 Exhibit Number 3, the January 4, that would be
14 the ship date of the first shipment of all of
15 the shipments included in the invoice?

16 A. I would have to look at it and
17 see. Yeah, the date there is the 4th.

18 Q. Right. What does the 4th -- I
19 mean, we know that the last delivery, based on
20 Exhibit 2, was January 13, so, you know, what
21 is January 4 exactly -- what does that
22 correspond to, if anything?

23 A. Those are -- corresponds to the
24 purchase order.

25 Q. Okay. And does ship date mean

1 anything?

2 A. On this, that's just something
3 that automatically kind of pops up on that.

4 Q. Okay. So, I mean, you would agree
5 that, you know, you wouldn't invoice, for
6 example, for a delivery that took place on
7 January 13, 2021 until after that delivery had
8 been made and received, correct?

9 A. No. The way -- the purchase
10 orders never really governed. So what we would
11 do with them, she would send me -- wouldn't
12 send me the daily -- have the billing to send
13 me the daily record on it, the delay tonnage.
14 She would hold all those and send them to me at
15 one time and allow us to invoice them from
16 there.

17 Q. Okay. And so your invoice, I
18 presume, would be generated after receiving
19 this Exhibit 2 with the precise weights,
20 correct?

21 A. Right.

22 Q. Okay. Fair enough.

23 A. In other words, they would hold --
24 in other words, they would hold the weights on
25 us for, you know, two to three weeks before we

1 could get the weights to invoice.

2 Q. Well, in this case in Exhibit 2,
3 you know, Ms. Rachel's email is dated the 20th
4 and the last shipment is the 13th. So, I mean,
5 that's one week, correct?

6 A. Well, those dates before, like on
7 the 4th, 5th, 6th, and 7th, those weren't given
8 to me until the 20th.

9 Q. Okay. Did you ever request that
10 they change that practice?

11 A. We all the time have to call and
12 ask them for weights and they just wouldn't
13 work -- I mean, just wouldn't do it.

14 Q. Who would call whom?

15 A. I would usually talk to -- well, a
16 lot of times it was Mike Wagner. I think it
17 was -- before him, I forget his name, whoever
18 it was before Mike Wagner, would talk to them
19 about trying -- if we can get weights sooner.
20 They just weren't set up to do that. I guess
21 that's the way they did it with other people,
22 on a bimonthly basis.

23 Q. Do you have any knowledge whether
24 you ever communicated an email over the, let's
25 say, two-week -- two-year relationship involved

1 in the contract at issue in this case about
2 getting weights more quickly?

3 A. I'm not sure. I think it had
4 always been like that.

5 Q. Okay. Fair to say that the
6 weights set forth in this Exhibit 2 correspond
7 with the shipments that took place under the
8 purchase order, which was Exhibit 1?

9 A. Say that again.

10 Q. Yeah. So Exhibit 2, Ms. Perkins
11 says, Hi, Tim, meaning you, I've closed out
12 this PO and opened a new one for the deliveries
13 January 18 to 29.

14 So if she's closed out this
15 purchase order, meaning the dash one, fair to
16 say that Ms. Perkins would transmit weights to
17 you once a purchase order had been completed?

18 MR. HUNTER: Object to the form.

19 A. Yeah. Yeah, so she would -- she
20 would send the -- like I say, the purchase
21 order from Lori, whatever her name was,
22 wouldn't come till after the fact most of the
23 time.

24 BY MS. RATHKE:

25 Q. The purchase order -- okay.

1 A. Like I said, it was never really
2 governed anyway.

3 Q. Okay. Which is fine. But I'm not
4 asking about that. Fair to say that
5 Ms. Perkins would transmit you an email
6 indicating weights for each shipment within a
7 purchase order?

8 A. Yes, that's correct.

9 Q. All right. And at that point,
10 after you received all of these precise
11 weights, that is when Fire Star would invoice
12 ACC, correct?

13 A. That's the first chance we would
14 get to do that, yeah.

15 Q. Okay. How would Fire Star
16 transmit that invoice to ACC? That is not
17 clear to me.

18 A. It would go email. You'd email it
19 to a -- Dorothy Dreher at one time, and then,
20 also, it went from Dorothy Dreher to also
21 another -- somebody else's email, another -- I
22 guess a payables department.

23 Q. Okay. And would -- typically
24 would you send the invoice the same day as
25 receiving weights from Ms. Perkins, or would it

1 take a few days?

2 A. Sometimes it would take, yeah, a
3 few days, just according when we got it.

4 Q. Okay. So let me just do this
5 exercise one more time to make sure that I've
6 got the flow.

7 (Exhibit 4 was marked
8 for identification.)

9 BY MS. RATHKE:

10 Q. All right. I am showing you and
11 enlarging what has been marked as Exhibit 4 to
12 your deposition.

13 First of all, do you see the
14 Exhibit 4 sticker?

15 A. Yes.

16 Q. All right. And do you recognize
17 Exhibit 4 to be an ACC purchase order dash
18 three dated February 9, 2021 in the amount of
19 600 tons to Fire Star?

20 A. Yes.

21 Q. All right.

22 A. I see that.

23 Q. And with regard to the invoice
24 dash three -- I'm sorry -- with regard to ACC
25 purchase order dash three...

1 (Exhibit 5 was marked
2 for identification.)

3 BY MS. RATHKE:

4 Q. Do you -- first of all, do you see
5 Exhibit 5, the sticker on your screen?

6 A. Yes.

7 Q. All right. And do you recognize
8 what's been marked as Exhibit 5 to your
9 deposition to be an email to you from
10 Ms. Perkins dated February 19, 2021 with regard
11 to ACC's purchase order dash three?

12 A. I do see the three, yes.

13 Q. All right. And do you see the
14 weight of dash three, the ACC measured weight
15 to be 606.95 tons?

16 A. Yes.

17 Q. All right. And then to round it
18 out -- actually -- and do you see the
19 deliveries in Exhibit 5 to be between the dates
20 of January 26 and February 12, 2021?

21 A. Yes.

22 Q. All right.

23 (Exhibit 6 was marked
24 for identification.)

25 BY MS. RATHKE:

1 Q. And do you see on your screen
2 the exhibit that's been marked with Exhibit
3 Number 6 to your deposition?

4 A. Yes.

5 Q. And do you recognize Exhibit 6 to
6 be the Fire Star Energy invoice corresponding
7 with purchase order dash three for 606.95 tons?

8 A. Yes.

9 Q. All right. And Exhibit 6, your
10 invoice, would have been transmitted after
11 receiving Exhibit 5, Ms. Perkins' email,
12 correct?

13 A. Yes.

14 Q. All right. And is that generally
15 true of the mode, method, and flow of ACC's
16 purchase order, Ms. Perkins' email with weights
17 and amounts, and Fire Star's invoices over the
18 course of the relationship in 2021 and 2022?

19 A. A lot of times it would be me
20 getting Rachel's weights first, a lot of times,
21 then I would get the purchase order, and then
22 we would issue our invoice --

23 Q. Okay.

24 A. -- off of Rachel's numbers.

25 Q. All right. In every instance, is

1 it fair to say that your invoices would be
2 issued off of Ms. Perkins' numbers?

3 A. Yes. Only way we would get -- we
4 were using her weights.

5 Q. Okay.

6 MS. RATHKE: I'm heartened by my
7 ability to use the technology, so I'm going to
8 do one more.

9 MR. HUNTER: And we're impressed by
10 it.

11 MS. RATHKE: Right. I mean, every --
12 it's kind of case-by-case; you know what I mean?

13 (Exhibit 7 was marked
14 for identification.)

15 BY MS. RATHKE:

16 Q. All right. Do you see on your
17 screen what's been marked with exhibit sticker
18 number 7?

19 A. Yes.

20 Q. And do you recognize Exhibit 7 to
21 be ACC's purchase order dash four to Fire Star
22 for 600 tons of coal to be delivered between
23 February 22 and March 5?

24 A. Yes.

25 Q. All right. And then corresponding

1 with that...

2 (Exhibit 8 was marked
3 for identification.)

4 BY MS. RATHKE:

5 Q. Do you see on your screen what has
6 been marked with exhibit sticker 8?

7 A. Yes.

8 Q. And do you recognize Exhibit 8 to
9 your deposition to be Ms. Perkins' email to you
10 dated March 1, 2021, corresponding with
11 purchase order dash four reflecting 611.01 tons
12 of coal?

13 A. Yes.

14 Q. And do you recognize that to
15 correspond with deliveries between the dates of
16 February 12, 2021 and February 24, 2021?

17 A. Yes.

18 (Exhibit 9 was marked
19 for identification.)

20 THE WITNESS: That last one,
21 February 24 -- February 24, last ship date on
22 it.

23 BY MS. RATHKE:

24 Q. All right. When you're ready,
25 do you recognize or do you see the exhibit

1 marked 9 on your screen?

2 A. Yes.

3 Q. All right. And do you recognize
4 Exhibit 9 to be a Fire Star invoice dated
5 February 12, 2021, corresponding with purchase
6 order dash four for the quantity indicated in
7 Ms. Perkins' email marked as Exhibit 8?

8 A. Yes.

9 Q. All right. And fair to say that
10 Exhibit 9 would have been sent after you
11 received Ms. Perkins' email marked as Exhibit
12 Number 8, correct?

13 A. Yes. It's how we get the weights.

14 Q. All right. Okay.

15 MR. HUNTER: I'm sorry. Do you have
16 the date of Exhibit 8 available? I'm sorry.

17 MS. RATHKE: Exhibit 8 corresponds
18 with deliveries February 12 to 24.

19 MR. HUNTER: And when was that sent?

20 MS. RATHKE: The email is dated
21 March 1, 2021.

22 MR. HUNTER: Thanks. That's what
23 I -- thank you.

24 MS. RATHKE: All right.

25 BY MS. RATHKE:

1 Q. All right. Do you recall in early
2 March 2021 an instance where ACC reported high
3 sulfur content out of the specifications set
4 forth in the parties' contract to Fire Star?

5 A. Yes, they told us that.

6 Q. Okay. What -- first of all, what
7 did they report to you?

8 A. Basically just called us and said
9 that they had gotten a high number -- high
10 sulfur reading at the plant.

11 Q. Okay. I mean, they didn't just
12 call you, they texted you as well, correct?

13 A. I don't remember if they text or
14 not. I remember them communicating with us
15 they got a high sulfur number.

16 Q. Okay. Did you do anything to
17 investigate the sulfur content of the coal that
18 had been delivered to ACC, like contact the
19 folks at Hazard?

20 A. Yeah, we checked our numbers at --
21 had our labs check the numbers. We were coming
22 back, of course, low sulfur on all of it, and
23 eventually -- eventually ACC or Archbold or the
24 company, Minerals, told us that that wasn't
25 correct, they had figured it wrong and their

1 numbers were wrong, ours were right.

2 Q. Did you ever transmit to ACC any
3 sort of COA, certificate of -- maybe COC,
4 certificate of conformance, with respect to the
5 coal that had suspected high sulfur content?

6 A. Yeah, they got that. They also
7 tested it themselves. They're all lab tested
8 and it came back --

9 Q. Was it --

10 A. -- low sulfur.

11 Q. I'm sorry. What did you say right
12 there?

13 A. Low sulfur. In other words, minus
14 one sulfur, which was the spec.

15 Q. Okay. Did -- was it your practice
16 to send -- I'm sorry. Is it a COC or a COA?

17 A. COA.

18 Q. What does that stand for?

19 A. Certificate of analysis.

20 Q. Okay. Was it your practice to
21 transmit a certificate of analysis to ACC
22 with -- regularly in 2021 to '22?

23 A. That would just be upon request.

24 Q. Okay. You would not -- fair to
25 say you did not transmit them with every

1 delivery?

2 A. No, probably not.

3 Q. And what's your level of
4 confidence that you transmitted a certificate
5 of analysis with regard to the delivery of --
6 delivery -- or delivery of coal that was
7 thought to have high sulfur content?

8 A. That specific date, I'm not for
9 sure if I sent them an actual COA or not.

10 Q. Okay. If that had been
11 transmitted, what would be the -- who would
12 have sent it to whom and by what mode?

13 A. That would probably been done by
14 email.

15 Q. And from whom?

16 A. To whom, you mean?

17 Q. Well, from whom and to whom?

18 A. That would have been from me to
19 Mike Wagner.

20 Q. And have you found such an email
21 transmitting a certificate of analysis?

22 A. I have not. I have not looked for
23 one.

24 (Exhibit 10 was marked
25 for identification.)

1 BY MS. RATHKE:

2 Q. I'm going to show you what I've
3 marked as Exhibit 10 to your deposition. First
4 let me know if you see the document on your
5 screen marked as Exhibit 10.

6 A. Yeah. Can you increase the size a
7 little bit?

8 Q. All right. Do you recognize
9 Exhibit 10 to be a text between you and Neil
10 Miller?

11 A. I'm not sure who that's to. I see
12 it has my name on top of it, but I'm not sure
13 who that's to.

14 Q. All right. Well, whoever this
15 says -- let's say it's Mr. Miller -- Hey, I'm
16 on the phone with the team right now. We need
17 to stop receiving coal from Fire Star
18 temporarily until we figure the sulfur issue.

19 Do you see that?

20 A. Yes. That's probably from Mike
21 Wagner. He would refer to things as the team a
22 lot.

23 Q. Okay. Do you recall receiving
24 this Exhibit 10 from Mr. Wagner?

25 A. I see that, yes.

1 Q. But do you recall receiving it?

2 A. Yeah, I remember. Yeah, I
3 remember getting something from him, yes.

4 Q. Okay. Do you -- have you deleted
5 any texts on your phone between you and anybody
6 working for ACC between 2021 and 2022?

7 A. No.

8 Q. Would those texts, then,
9 therefore, still be on your phone?

10 A. I assume so.

11 Q. All right. And you've got --
12 looks like you have an iPhone? I think that's
13 a blue --

14 A. Yes.

15 Q. Have you looked for text messages
16 responsive to ACC's discovery requests to you
17 in this case?

18 A. Yeah, I have. I didn't find
19 anything.

20 Q. And what -- specifically what did
21 you look for?

22 A. I looked for anything from --
23 which would be Neil Miller or Mike Wagner or to
24 whoever I talked to.

25 Q. Okay. And I take it you didn't

1 find what's been marked as Exhibit 10?

2 A. Uh-uh.

3 Q. Sorry. Is that a no?

4 A. No, I guess not.

5 Q. Okay.

6 A. Probably Mike Wagner.

7 Q. And when did you perform this
8 search?

9 A. A few weeks ago.

10 Q. And did you specifically look for
11 texts with Mr. Wagner?

12 A. Yes.

13 Q. And how would you have --

14 A. Type in ACC or type in -- I'm not
15 sure what I had him in under, M Wagner, Mike
16 Wagner.

17 Q. Okay.

18 A. Wagner, Mike, something.

19 Q. Did you specifically look for
20 texts between you and Mr. Neil Miller?

21 A. Yes.

22 Q. Okay. Did you look for texts
23 discussing the ACC contract or coal deliveries
24 between you and other people who work for Fire
25 Star, such as your brother?

1 A. Yes, I did; didn't see anything.

2 Q. And are you still using the same
3 phone -- strike that.

4 Are you still using the same
5 phone number as you were using in, let's say,
6 March 4, 2021?

7 A. Yes, I think so.

8 Q. Same provider as well?

9 A. Yes.

10 Q. Later you say within Exhibit 10 --
11 you say, Give me a call, would like to discuss
12 the Chat, which I think means Chattanooga,
13 business.

14 What does that refer to?

15 A. Yeah, can you scroll that a little
16 bit? I can see about half of that.

17 Q. Oh, I'm sorry about that. There
18 you go.

19 A. Yeah, there you go. Okay.

20 Q. Okay. What does this refer to?

21 A. See, this is in July of '21?
22 Okay. That business was coming back up for
23 rebid for another year.

24 Q. And specifically what did you wish
25 to speak about?

1 A. About when the RFP was coming out
2 for it, I guess.

3 Q. Okay. Were you trying to get that
4 business?

5 A. Yeah, I would assume we would try
6 to re-sign it again.

7 Q. Okay. And did you?

8 A. No.

9 Q. And did you know -- do you happen
10 to know why you weren't re-awarded that
11 business?

12 A. Not really. I guess they got it
13 off somebody else, different mine.

14 Q. Okay. Have you pitched for other
15 ACC business since, let's say, July 21, 2021?

16 A. July -- July -- say that again.

17 Q. Yeah. Have you pitched for any
18 other ACC business after July 21, 2021?

19 A. July 21. We pitched for any more
20 business for ACC?

21 Q. Yes, sir.

22 A. Meaning ACC, meaning Archbold, or
23 meaning --

24 Q. Let's start with --

25 A. When you say ACC -- I'm sorry.

1 Q. Yeah. Any plant within ACC. Any
2 part of the ACC business.

3 A. No, not for anywhere else.
4 What -- Mike Wagner would ask me to give him
5 prices on stuff, and that would never even get
6 to the point where they would give a price.

7 Q. Okay. And since July 21, 2021,
8 has Fire Star pitched for any additional
9 Archbold business?

10 A. As part of our contract, we were
11 supposed to have had a second look or a first
12 right of refusal for the '23 business.

13 Q. Okay. Have you indicated your
14 desire to exercise that right of first refusal?

15 A. They never did notify us when they
16 were doing RFP if they were coming up for
17 contract business or -- they were supposed to
18 include contract business or short-term spot
19 work, they did not notify us when or if they
20 were doing that.

21 Q. Did you indicate your intention to
22 exercise any right of first refusal?

23 A. Yeah, they always knew we wanted
24 to rebid it.

25 Q. In what form did you indicate your

1 desire to exercise the right of first refusal?

2 When did you transmit that exercise to ACC?

3 A. That would have probably been when
4 we asked for -- in late, I guess is it, July,
5 or the lawyers asked for an extension on the
6 business.

7 Q. Okay. Other than those -- the
8 lawyers meaning me on the one side and a fellow
9 named Pat --

10 MR. HUNTER: Hauser.

11 BY MS. RATHKE:

12 Q. -- Hauser, H-a-u-s-e-r, on the
13 other side, those are the communications that
14 you mean?

15 A. We did -- we asked for -- you
16 know, we told -- Duane talked to Neil about,
17 you know, our inability to ship because they
18 were really behind with payments, that we need
19 a letter of credit or some kind of form of
20 assurance of payment. That was in like May.
21 And then again with Mike Wagner, sometime in
22 June. Of course, Mike says, I think we can
23 work something out. Then we get a letter
24 saying we're basically being sued.

25 Q. Is it your testimony that you had

1 written or oral communications with Mr. Miller
2 regarding the right of first refusal?

3 A. No. This is -- this was for our
4 ability to cease ship the contract business,
5 not for '23 business.

6 Q. Okay. So fair to say you had no
7 communications, written or oral, with
8 Mr. Miller about exercising any right of first
9 refusal in 2023 and beyond, correct?

10 A. No, that was for -- probably with
11 Mr. -- with Mike Wagner, that we were going
12 to -- you know, we were going to be able to do
13 the business, and we basically got no contact
14 back from him on any '23 business. They were
15 supposed to notify us if they were going to
16 have '23 business, but they didn't do that.

17 Q. Okay. Is it -- so you say you --

18 A. We never declined saying we didn't
19 want to do '23 business.

20 Q. Okay. Is it your -- so you said
21 you contacted Mr. Wagner about exercising your
22 right of first refusal, but he never got back
23 to you; is that what you've testified?

24 A. Our first refusal for '23
25 business?

1 Q. Yeah.

2 A. Yeah. They were supposed to tell
3 us when that was going to be, when '23 was
4 going to happen, when there was going to be an
5 RFP. So we were never notified by them.

6 Q. Okay. My question is --
7 (Overlapping speakers.)
8 (Clarification by the reporter.)

9 BY MS. RATHKE:

10 Q. My question is, did you
11 communicate with Mr. Wagner about your desire
12 to exercise your right of first refusal in
13 2023?

14 A. Oh, yeah, they knew that. Yes.

15 Q. When did you communicate that with
16 Mr. Wagner?

17 A. That would have been in June.

18 Q. And your testimony is that
19 Mr. Wagner did not contact you back?

20 A. Correct. That's correct.

21 Q. Okay. So did you communicate with
22 Mr. Wagner, then, in an email or in a text
23 message?

24 A. That would have been -- that would
25 have been a phone call. It would have been, my

1 understanding, Duane talked to him. That was
2 my understanding of it.

3 Q. Well, if they had a conversation,
4 then how could it be that Mr. Wagner did not
5 communicate in response? Was he simply silent
6 on the phone call?

7 A. No. That we did want -- that we
8 did want the '23 business if that was
9 available, and they were to -- they were to
10 contact us when the '23 business became
11 available, but they never did notify us when
12 that was going to happen.

13 Q. Okay. What is the source of your
14 understanding that your brother, Duane Jones,
15 had this communication?

16 A. That's what he told me.

17 Q. When?

18 A. I don't know. During our
19 conversations.

20 Q. Which conversations?

21 A. Conversations that we had.

22 Q. When?

23 A. I don't know which conversation,
24 but conversations which we had.

25 Q. At what point in time?

1 A. I don't understand that question.

2 Q. At what point in time did Mr. --
3 did your brother tell you that he had had
4 communications with Mr. Wagner concerning Fire
5 Star's right of first refusal? When did he
6 tell you that?

7 A. Probably when all this was going
8 on back in 2022.

9 Q. And where did this conversation
10 between you and your brother take place?

11 A. I mean, I see him every other day,
12 every -- two or three times a week. I'm not
13 sure where it was at or...

14 Q. Okay. Other than whatever
15 conversation occurred when this was happening
16 in 2022, have you had any other conversations
17 where your brother told you that he exercised
18 the right of first refusal with Mr. Wagner?

19 A. I really don't understand what
20 you're saying by right of first refusal when
21 you say it that way.

22 Q. Well, I was using your words.

23 A. We didn't -- I don't know -- we
24 did not refuse the '23 business. You're saying
25 we -- you know --

1 MR. HUNTER: She means -- she means
2 your ability to --

3 THE WITNESS: Right. Yeah, we were
4 never given the opportunity. We told Neil -- or
5 not Neil, but Mike Wagner, we still want '23
6 business. We were never given the ability to
7 match the price for '23.

8 MR. HUNTER: But then she was asking
9 do you recall having another conversation where he
10 told you that again about that talk --

11 I'm sorry, Sarah. I mean, I'm trying
12 to help.

13 THE WITNESS: Yeah. Do I recall
14 when? Is that what you're asking me?

15 MR. HUNTER: I think that was her
16 question.

17 THE WITNESS: Yeah, I guess at that
18 same time.

19 BY MS. RATHKE:

20 Q. Okay. Any other time?

21 A. In reviewing everything, I guess,
22 after we reviewed everything as far as...

23 Q. So this last week he told you that
24 again?

25 A. I'm not sure it would have been

1 this past week. We talk about this quite a
2 bit. We went over things for several hours,
3 so...

4 (Exhibit 11 was marked
5 for identification.)

6 BY MS. RATHKE:

7 Q. All right. I've marked Exhibit 11
8 to your deposition. First of all, do you see
9 the exhibit sticker?

10 A. Yes, I do.

11 Q. Okay. Exhibit 11 -- this little
12 number on the bottom of the page indicates that
13 it's been produced by ACC but not by Fire Star.
14 So let me ask, Exhibit 11 purports to be a
15 letter dated April 12, 2021 from ACC's Aric
16 Wentz to you. And I'll just give you a moment
17 to take a look. And my question ultimately is,
18 do you recall actually receiving Exhibit 11?

19 A. Can you pull that down a little
20 bit?

21 Q. Yep. Yep, I can.

22 A. Or back up just a little. You
23 rolled past one paragraph there.

24 Q. Sorry about that.

25 A. Okay. Okay. Now you can pull it

1 down. Pull it on down a little more. There we
2 go.

3 Okay.

4 Q. My question to you is, do you
5 recall actually ever receiving Exhibit 11?

6 A. That one I do, yeah.

7 Q. Okay. Let me ask about a passage
8 within it which says, On March 15, 2021, an ACC
9 representative visited Fire Star's facilities
10 to address the situation. During this meeting,
11 Fire Star agreed to cease loading out of the
12 stockpile from which it had been delivering
13 product to ACC and load new deliveries from a
14 different stockpile. Since this corrective
15 action, test data shows that, as received,
16 sulfur content has improved remarkably and is
17 once again within the specifications.

18 Do you see that?

19 A. Yes, I do.

20 Q. Okay. My question is, on
21 April 15, 2021, who was the ACC representative
22 that visited Fire Star?

23 A. My knowledge, that was Mike
24 Wagner.

25 Q. Okay. And who did he meet with

1 from Fire Star?

2 A. He met with -- would have been
3 Duane Jones.

4 Q. Okay. Were you involved in that?

5 A. No. I was not there.

6 Q. Okay. All right. To the best of
7 your knowledge, is the rest of the content set
8 forth in that paragraph that I just read within
9 Exhibit 11, is that accurate?

10 A. I don't know what you mean by
11 accurate. As far as what he's saying?

12 Q. Yes.

13 A. He's saying what he's saying. Not
14 that I agree with what he's saying, but I see
15 what it says.

16 Q. Okay. Is it -- is it accurate?

17 A. No, it's not accurate because the
18 sulfur was never out of spec. They agreed to
19 that. Eventually they said their testing was
20 wrong.

21 Q. Okay. In what format did they say
22 that?

23 A. Eventually Neil told us, I think,
24 that they had messed up.

25 Q. And Neil told that to who

1 specifically?

2 A. I think -- I think Duane, I guess.
3 I didn't talk to Neil too much, so...

4 Q. Okay. When did he make this
5 statement to Duane?

6 A. I'm not sure.

7 Q. Okay. Was it ever made in
8 writing?

9 A. No, I'm not sure of that. No, I
10 wouldn't think so. We did start shipping it
11 right away right after that.

12 Q. Okay.

13 A. Started shipping again.

14 Q. And did Fire Star ever transmit
15 anything in writing that disagreed with the
16 statements set forth in the paragraph that I
17 just read within Exhibit 11?

18 A. I don't know -- pretty much --
19 from that to a phone call, from that to a phone
20 call in the next day or a few days later.

21 Q. I'm sorry. I think that was a
22 little garbled for me. My question was, did
23 anybody from --

24 A. No --

25 Q. I'm going to go ahead and ask.

1 A. Okay.

2 Q. Did anybody from Fire Star
3 transmit anything in writing to ACC disagreeing
4 with the paragraph that I just read within
5 Exhibit 11?

6 A. No, I don't think so.

7 Q. Did the sulfur issue cause a
8 change in the relationship between ACC and Fire
9 Star?

10 A. Yes. Aric Wentz came in -- I'm
11 not sure if he was with ACC or not at the time.
12 We never really dealt with him. But, yeah, he
13 basically got into that situation.

14 Q. Okay. And how did that change the
15 relationship, or is the existence of Aric just
16 what you're saying the change in relationship
17 was?

18 A. Yeah. It was very -- he was very
19 demanding on what we were going to do, how we
20 were going to do it, when we were going to do
21 it. And basically that way -- you know, that
22 changed everything. I think from that -- from
23 that point on, it was like he was done with
24 Fire Star.

25 Q. Okay. Well, I'll ask you not to

1 testify to Aric Wentz's perspective, but from
2 your perspective, did the relationship change
3 after that point?

4 A. Oh, for certain, yeah.

5 Q. Tell me about that.

6 A. Well, it went from everything had
7 to go through -- basically a lot of things had
8 to go through Aric, from my understanding, just
9 from Mike Wagner and from Neil Miller. He was
10 basically done with us. We wouldn't, I guess,
11 go along with what he said. Originally saying
12 the sulfur was bad, I guess his reading said
13 that. Then I assume, for us, they eventually
14 come back and said, no, we were wrong, and he
15 wasn't really to face that, I guess, but they
16 were wrong and we were right.

17 Q. Okay.

18 A. And then I think he had a sour
19 taste in his mouth for Fire Star after that
20 event.

21 Q. Okay. And, you know, we can talk
22 to Aric about what Aric thought and felt, and I
23 think --

24 A. Right.

25 Q. -- I think it's probably better.

1 How about you? How about from Fire Star's
2 perspective, did the relationship change after
3 the sulfur issue came up?

4 A. No, not really. Just another
5 order for us. We deliver coal. Of course, it
6 became more difficult as far as being able to
7 communicate.

8 Q. Anything else?

9 A. No.

10 THE REPORTER: Sarah, before you go
11 on, is this a good time for a quick break?

12 MS. RATHKE: Sure. Do you need to --
13 sure.

14 THE VIDEOGRAPHER: We're off the
15 record.

16 (Recess taken from 11:09 to 11:18.)

17 THE VIDEOGRAPHER: We're on the
18 record.

19 (Exhibit 12 was marked
20 for identification.)

21 BY MS. RATHKE:

22 Q. All right. We're back from a
23 break. Mr. Jones, do you see on your screen a
24 document with exhibit sticker 12 to your
25 deposition?

1 A. Yes.

2 Q. All right. Do you recognize
3 Exhibit 12 to be ACC-issued purchase order dash
4 seven dated April 26, 2021 for 700 tons of
5 coal?

6 A. Yes.

7 Q. And that's to Fire Star?

8 A. Yes.

9 Q. All right. And, again, that's
10 dash seven. So...

11 (Exhibit 13 was marked
12 for identification.)

13 BY MS. RATHKE:

14 Q. All right. Do you see on your
15 screen a document with exhibit sticker 13 to
16 your deposition?

17 A. Yes.

18 Q. And do you recognize Exhibit 13 to
19 be Ms. Perkins' email to you dated May 20 --
20 May 13, 2021, corresponding with purchase order
21 dash seven?

22 A. Yes.

23 Q. And do you recognize that to be
24 for deliveries as between April 27, 2021 and
25 May 13, 2021?

1 A. Yes.

2 (Exhibit 14 was marked
3 for identification.)

4 BY MS. RATHKE:

5 Q. And do you see on your screen a
6 document marked with exhibit sticker 14 to your
7 deposition?

8 A. Yes.

9 Q. And do you recognize Exhibit 14 to
10 be Fire Star's invoice pertaining to purchase
11 order dash seven and the delivery set forth in
12 Ms. Perkins' email in Exhibit 13?

13 A. Yes.

14 Q. And as such, Exhibit 14 would have
15 followed after Ms. Perkins' email marked as
16 Exhibit 13; fair to say?

17 A. Right, invoice after she sent us
18 weights.

19 Q. Yep.
20 (Exhibit 15 was marked
21 for identification.)

22 BY MS. RATHKE:

23 Q. All right. Do you recognize -- do
24 you see on your screen a document with exhibit
25 sticker 15 to your deposition?

1 A. Yes.

2 Q. And do you recognize Exhibit 15 to
3 be ACC purchase order dash eight to Fire Star
4 dated May 25, 2021 for 700 tons of coal?

5 A. Yes.

6 (Exhibit 16 marked
7 for identification.)

8 BY MS. RATHKE:

9 Q. And do you now see a document
10 coming up with exhibit sticker 16 to your
11 deposition?

12 A. Yes.

13 Q. And do you recognize Exhibit 16 to
14 be Ms. Perkins' email to you dated June 3,
15 2021, corresponding with ACC purchase orders --
16 order dash eight?

17 A. Yes.

18 Q. And do you recognize the amount of
19 coal set forth in Exhibit 16 to be 614.94 tons?

20 A. Yes.

21 Q. And do you recognize it to be
22 deliveries between May 17 and June 3, 2021?

23 A. Yes.

24 (Exhibit 17 was marked
25 for identification.)

1 BY MS. RATHKE:

2 Q. Do you see on your screen a
3 document that bears exhibit sticker number 17
4 to your deposition?

5 A. Yes.

6 Q. Do you recognize Exhibit 17 to be
7 ACC purchase order dash nine dated June 7, 2021
8 for the quantity of 700 tons of coal?

9 A. Yes.

10 (Exhibit 18 was marked
11 for identification.)

12 BY MS. RATHKE:

13 Q. And do you see on your screen now
14 a document that bears exhibit sticker 18 to
15 your deposition?

16 A. Yes.

17 Q. And do you recognize Exhibit 18 to
18 be Ms. Perkins' email to you dated June 18,
19 2021, corresponding with ACC invoice dash nine?

20 A. Yes.

21 Q. And do you recognize Exhibit 18 to
22 be for 496.51 tons of coal and deliveries
23 received between June 4, 2021 and June 18,
24 2021?

25 A. Yes.

1 (Exhibit 19 was marked
2 for identification.)

3 BY MS. RATHKE:

4 Q. Do you see on your screen a
5 document that bears Exhibit Number 19?

6 A. Yes.

7 Q. And do you recognize Exhibit 19 to
8 be Fire Star invoice dated June 4, 2021,
9 corresponding to ACC purchase order dash nine?

10 A. Yes.

11 Q. All right. And Exhibit 19 would
12 have been sent after you received Ms. Perkins'
13 email at Exhibit 18, correct?

14 A. Yes. That's how we get our
15 weights.

16 Q. All right. You know what,
17 irritatingly, I think I missed one, so hold on
18 just one second.

19 MR. HUNTER: You missed the invoice
20 after the June 3rd letter, I know.

21 (Exhibit 20 was marked
22 for identification.)

23 BY MS. RATHKE:

24 Q. All right. Do you see a document
25 coming up on your screen with Exhibit Number 20

1 on it?

2 A. Yes.

3 Q. Do you see -- do you recognize
4 Exhibit 20 to be Fire Star's invoice dated
5 May 17, 2021 that corresponds with ACC purchase
6 order dash eight?

7 A. Yes.

8 (Exhibit 21 was marked
9 for identification.)

10 BY MS. RATHKE:

11 Q. All right. Do you see an exhibit
12 on your screen with exhibit sticker number 21
13 on it?

14 A. Yes.

15 Q. Do you recognize what's been
16 marked as Exhibit 21 to your deposition to be
17 ACC purchase order dash ten to Fire Star dated
18 June 22, 2021 and for the amount of 700 tons of
19 coal?

20 A. Yes.

21 (Exhibit 22 was marked
22 for identification.)

23 BY MS. RATHKE:

24 Q. All right. Do you see a document
25 on your screen that's -- bears exhibit sticker

1 22 to your deposition?

2 A. Yes.

3 Q. And do you recognize Exhibit 22 to
4 be Ms. Perkins' email to you dated July 20 --
5 July 2, 2021, corresponding to ACC purchase
6 order dash ten?

7 A. Yes.

8 Q. And do you recognize Exhibit 22 to
9 reflect deliveries in the quantity of 697.16
10 tons of coal delivered between June 21, 2021
11 and July 1, 2021?

12 A. Yes.

13 (Exhibit 23 was marked
14 for identification.)

15 BY MS. RATHKE:

16 Q. Do you see on your screen a
17 document bearing exhibit label Number 23 to
18 your deposition?

19 A. Yes.

20 Q. And do you recognize Exhibit 23 to
21 be Fire Star invoice dated June 21, 2021,
22 corresponding to ACC invoice -- ACC purchase
23 order dash ten?

24 A. Yes.

25 Q. All right. And you would have

1 sent Exhibit -- this Exhibit 23 after receiving
2 the weights set forth in Ms. Perkins' email to
3 you that we just marked as Exhibit 22, correct?

4 A. Yes.

5 (Exhibit 24 was marked
6 for identification.)

7 BY MS. RATHKE:

8 Q. All right. Do you see on your
9 screen a document bearing exhibit sticker
10 number 24 to your deposition?

11 A. Yes.

12 Q. Do you recognize Exhibit 24 to be
13 ACC purchase order to Fire Star dash 11 dated
14 July 5, 2021 in the amount of 700 tons of coal?

15 A. Yes.

16 (Exhibit 25 was marked for
17 identification.)

18 BY MS. RATHKE:

19 Q. Do you see a document on your
20 screen that bears exhibit sticker number 25 to
21 your deposition?

22 A. Yes.

23 Q. And do you recognize Exhibit 25 to
24 your deposition to be an email to you from
25 Ms. Perkins dated July 16, 2021, corresponding

1 with ACC purchase order dash 11?

2 A. Yes.

3 Q. And do you recognize that
4 Exhibit 25 corresponds with shipments of coal
5 in the amount of 488.46 tons of coal delivered
6 between July 2, 2021 and July 14, 2021?

7 A. Yes.

8 (Exhibit 26 was marked
9 for identification.)

10 BY MS. RATHKE:

11 Q. All right. Do you see an
12 exhibit -- a document on your screen that's
13 been marked with exhibit sticker 26 to your
14 deposition?

15 A. Yes.

16 Q. Do you recognize Exhibit 26 to be
17 Fire Star's invoice dated July 2, 2021 that
18 corresponds with MT -- with ACC purchase order
19 dash 11?

20 A. Yes.

21 Q. And do you -- fair to say that
22 Exhibit Number 26 would have been sent after
23 you received Ms. Perkins' email concerning
24 delivery weights that we marked as Exhibit 25?

25 A. Yes.

1 (Exhibit 27 was marked
2 for identification.)

3 BY MS. RATHKE:

4 Q. All right. Do you see a document
5 on your screen marked as Exhibit 27 to your
6 deposition?

7 A. Yes.

8 Q. All right. Exhibit 27 to your
9 deposition is a series of email exchanges
10 between Dwayne Cotton Couch and Neil Miller.

11 Do you see that?

12 A. I do see it says Cotton on top of
13 it.

14 Q. Okay. Fair enough. You had
15 testified previously that Dwayne Couch was
16 sometimes referred to as Cotton, correct?

17 A. Right, that's correct.

18 Q. All right. Did you see Exhibit 27
19 in preparing for your deposition today?

20 A. I seen that.

21 Q. All right. Have you inquired from
22 Mr. Couch as to whether he has any text
23 messages between him and anybody working for
24 ACC in producing documents for this litigation?

25 A. No. Just asked him how he found

1 out about loads. Either be, you know, one of
2 the truckers that told him or sometimes
3 occasionally Neil would text him or something
4 like that. I didn't ask about seeing his
5 texts.

6 Q. All right. So you don't know
7 whether Mr. Couch produced text messages in
8 this litigation? Actually, strike that.

9 Fair to say that because you didn't
10 ask him, Mr. Couch would not have produced any of
11 his text messages in this litigation, correct?

12 A. I guess I didn't ask him for his
13 text messages, no.

14 Q. Okay. Were you aware that we had
15 specifically asked for production of text
16 messages in this litigation?

17 A. Yes.

18 Q. All right. Did you ask your
19 brother, Duane, whether he had any text
20 messages communicating with folks at ACC?

21 A. Yes. He didn't have any.

22 Q. All right. And did you ask your
23 brother, Duane, whether he had text messages
24 with other employees of Fire Star that related
25 to ACC?

1 A. Yes.

2 Q. And what was the response?

3 A. That he didn't have any text
4 messages.

5 Q. All right. So turning to
6 Exhibit 27, Mr. Couch asks, Are you okay with
7 the two loads a day or need send you more?
8 Just let me know. Thanks, Neil. And then Neil
9 says, You can send as many as you can get for
10 now.

11 My question is, were you aware that a
12 communication of this type, in sum and substance,
13 took place on or about July 7, 2021.

14 A. No.

15 Q. Were you aware that in July 2021
16 ACC was asking for as much coal as they could
17 get from Fire Star?

18 A. No, not really. Like I say, we
19 was always told to contact -- or us -- or Mike
20 Wagner was going to contact us about what was
21 delivered. We just continued with our five to
22 six loads a week.

23 Q. Okay. Because of that, are you
24 saying -- because you were told that you would
25 be communicating with Mr. Wagner, are you

1 saying that, as a result, Cotton -- Mr. Couch
2 or anybody else at Fire Star would have simply
3 ignored communications from Mr. Miller?

4 A. I don't know -- I mean, at this
5 point Cotton's just a trucker, you know; just a
6 trucker. He's a truck -- of course, a trucker
7 want to haul all they can haul, but that
8 doesn't -- that doesn't mean anything.

9 Q. My question is, because you
10 thought you were to be communicating with
11 Mr. Wagner, does that mean that people at ACC
12 would have ignored communications from
13 Mr. Miller in July 2021?

14 A. As far as Mr. Wagner supposed to
15 communicate with Duane or I. I don't know
16 anything about communicating with Cotton.

17 Q. Okay. Still hasn't answered my
18 question, though. If -- because you believed
19 that you were supposed to communicate with
20 Mr. Wagner, does that mean that anybody at ACC
21 that Mr. Miller communicated with, they would
22 have ignored Mr. Miller?

23 MR. HUNTER: Object to the form.
24 He's talking -- I thought you were asking about
25 Cotton.

1 MS. RATHKE: Well, I'm not. I'm
2 asking what I'm asking.

3 BY MS. RATHKE:

4 Q. Because you thought that you were
5 supposed to be communicating with Mr. Wagner,
6 does that mean that anybody who received
7 communications from Mr. Miller in July 2021
8 would have ignored them?

9 A. No, I don't know that, whether
10 they would ignore it or not. For Cotton to say
11 whether --

12 MR. HUNTER: She's not asking about
13 Cotton.

14 THE WITNESS: Okay.

15 MR. HUNTER: She's asking if you had
16 gotten a communication from Neil, would you or
17 Duane have ignored it.

18 THE WITNESS: No, not really,
19 probably wouldn't have ignored it, but it still
20 would have gone through Mike Wagner. We were told
21 everything goes through him.

22 BY MS. RATHKE:

23 Q. So would you have refused to
24 communicate with Mr. Miller?

25 A. No, wouldn't refuse to communicate

1 with him. He basically told us he wasn't
2 allowed to communicate with us.

3 Q. All right. So would you have
4 ignored him if he had communicated with you?

5 MR. HUNTER: Object to the form.
6 Calls for speculation.

7 You can answer.

8 A. Yeah, I mean -- I'm not sure.
9 (Exhibit 28 was marked
10 for identification.)

11 BY MS. RATHKE:

12 Q. Do you see a document on your
13 screen bearing exhibit sticker 28?

14 A. Yes.

15 Q. And do you recognize Exhibit 28 to
16 be an ACC purchase order dash 12 dated July 16,
17 2021 for 700 tons of coal?

18 A. Yes.

19 MS. RATHKE: Sorry. You all can
20 probably see that, huh? All right.

21 (Exhibit 29 was marked
22 for identification.)

23 BY MS. RATHKE:

24 Q. All right. We're in business. Do
25 you see on your screen a document marked with

1 exhibit sticker 29 to your deposition?

2 A. Yes.

3 Q. All right. And do you recognize
4 Exhibit 29 to contain an email message from
5 Ms. Perkins to you dated July 30, 2021
6 pertaining to ACC purchase order dash 12?

7 A. Yes.

8 Q. And do you recognize the quantity
9 set forth in Exhibit 29 to be 446.09 tons
10 delivered between July 20 and July 30, 2021?

11 A. Yes.

12 (Exhibit 30 was marked
13 for identification.)

14 BY MS. RATHKE:

15 Q. All right. Do you see on your
16 screen a document that bears exhibit sticker 30
17 to your deposition?

18 A. Yes.

19 Q. And do you recognize Exhibit 30 to
20 be a Fire Star invoice dated July 20, 2021,
21 corresponding to ACC purchase order dash 12?

22 A. Yes.

23 Q. And do you recognize Exhibit 30 to
24 correspond with deliveries in the amount of
25 446.09 tons of coal?

1 A. Yes.

2 Q. And Exhibit 30 would have been
3 sent after receiving Ms. Perkins' email to you,
4 which was marked as Exhibit 29, correct?

5 A. Yes.

6 (Exhibit 31 was marked
7 for identification.)

8 BY MS. RATHKE:

9 Q. Do you see on your screen a
10 document that bears exhibit sticker number 31
11 to your deposition?

12 A. Yes.

13 Q. And are you aware that Exhibit 31
14 is a series of text messages between your
15 brother, Duane Jones, and Neil Miller with the
16 first one, top text, dated July 27, 2021?

17 A. Can you make that a little bigger,
18 please?

19 Q. Yep.

20 A. Yeah, I see that -- I don't see
21 who that's to, but I see that's from Duane
22 Jones.

23 Q. Okay. Were you aware that
24 Duane Jones was, in fact, communicating with
25 Mr. Miller about ACC's coal needs at the

1 Archbold plant in July 2021?

2 A. Yeah, I assume they were a little
3 bit.

4 Q. Okay. And would Duane have -- I
5 mean, you can see the text dated July 27, 2021
6 is your brother, Duane, communicating with
7 Neil. He says, Sorry for the delay. We should
8 have fresh coal in tomorrow.

9 My question is, if it was your belief
10 that ACC -- that Fire Star was supposed to
11 communicate only with Mr. Wagner, why is your
12 brother communicating with Mr. Miller on July 27,
13 2021 about coal deliveries?

14 A. Maybe Neil contacted him. I don't
15 know.

16 Q. Did you investigate that in your
17 capacity as corporate representative testifying
18 under oath on behalf of the corporation in
19 today's deposition?

20 A. No, I didn't. I didn't check on
21 that text, no.

22 Q. Were you aware that Mr. Miller and
23 your brother, Duane Johnson -- Jones, were
24 communicating with each other about coal
25 deliveries in August and September of 2021?

1 A. Yeah, looks real sporadic. Looks
2 like a month or so apart, not anything on a
3 continuous basis, doesn't look like.

4 Q. My question was, were you aware
5 that your brother, Duane Johnson [sic], was
6 communicating with Neil Miller about coal
7 deliveries in August and September of 2021?

8 A. No, not myself personally, no.

9 Q. Did you investigate that in your
10 capacity as the testifying deponent for your
11 corporation under oath in your deposition
12 today?

13 A. No.

14 (Exhibit 32 was marked
15 for identification.)

16 BY MS. RATHKE:

17 Q. Do you see a document on your
18 screen marked Exhibit 32 to your deposition?

19 A. Yes.

20 Q. Do you recognize Exhibit 32 to be
21 an ACC purchase order dash 13 to Fire Star
22 dated July 30, 2021 in the amount of 700 tons
23 of coal?

24 A. Yes.

25 (Exhibit 33 was marked

1 for identification.)

2 BY MS. RATHKE:

3 Q. All right. On your screen do you
4 see a document that bears Exhibit Number 33 to
5 your deposition?

6 A. Yes.

7 Q. And do you recognize Exhibit 33
8 to be a August 13, 2021 email from Ms. Perkins
9 to you corresponding with ACC purchase order
10 dash 13?

11 A. Yes.

12 Q. And do you recognize Exhibit 33 to
13 memorialize deliveries of 430.36 tons of coal
14 delivered in deliveries between August 2 and
15 August 13, 2021?

16 A. Yes.

17 (Exhibit 34 was marked
18 for identification.)

19 BY MS. RATHKE:

20 Q. All right. Do you see an
21 exhibit -- a document on your screen marked
22 Exhibit 34 to your deposition?

23 A. Yes.

24 Q. And do you recognize Exhibit 34 to
25 be a Fire Star invoice dated August 2, 2021,

1 corresponding with ACC purchase order dash 13
2 and 430.36 tons of coal?

3 A. Yes.

4 Q. And fair to say that Exhibit
5 Number 34 would have been sent out by Fire Star
6 after receiving Ms. Perkins' email to you with
7 weights at Exhibit 33?

8 A. Yes.

9 (Exhibit 35 was marked
10 for identification.)

11 MR. HUNTER: Sarah, when you come to
12 a stopping point, let's talk logistics. Okay?

13 BY MS. RATHKE:

14 Q. Do you see on your screen a
15 document bearing exhibit sticker number 35?

16 A. Yes.

17 Q. And do you recognize Exhibit 35 to
18 be ACC purchase order dash 14 to Fire Star
19 dated August 16, 2021 in the amount of 700 tons
20 of coal?

21 A. Yes.

22 (Exhibit 36 was marked
23 for identification.)

24 BY MS. RATHKE:

25 Q. Now on your screen do you see a

1 document that bears exhibit sticker 36 to your
2 deposition?

3 A. Yes.

4 Q. And do you recognize Exhibit 36 to
5 be an email from Ms. Perkins to you dated
6 September 3, 2021, corresponding with ACC
7 purchase order dash 14?

8 A. Yes.

9 Q. And do you recognize that email to
10 set forth deliveries of 475.19 tons of coal in
11 deliveries between August 18 and September 2,
12 2021?

13 A. Yes.

14 (Exhibit 37 was marked
15 for identification.)

16 BY MS. RATHKE:

17 Q. All right. On your screen do
18 you see a document bearing exhibit sticker
19 number 37 to your deposition?

20 A. Yes.

21 Q. Do you recognize Exhibit 37 to be
22 a Fire Star invoice to ACC dated August 18,
23 2021, corresponding to ACC purchase order
24 dash 14 in the tonnage amount of 475.19 tons?

25 A. Yes.

1 (Exhibit 38 was marked
2 for identification.)

3 BY MS. RATHKE:

4 Q. All right. Do you see a document
5 on your screen that bears exhibit sticker 38 to
6 your deposition?

7 A. Yes.

8 Q. All right. Do you recognize
9 Exhibit 38 to be a text message -- series of
10 text messages between Neil Miller from ACC,
11 Dwayne Couch from Fire Star, and your brother,
12 Duane Jones, from Fire Star?

13 A. Can you make that a little bigger,
14 please?

15 Q. Sure. Let me know if you --

16 A. I see where it says -- Yeah, I see
17 where it says C and D at the top of it.

18 Q. Okay. Are you -- do you know what
19 C and D stand for?

20 A. No, I don't.

21 Q. Did you investigate that as part
22 of your duties as corporate representative?

23 A. I'm sorry.

24 (Overlapping speakers.)

25 A. I assume it would be Cotton.

1 (Clarification by the reporter.)

2 THE WITNESS: Waiting for me?

3 MR. HUNTER: I don't know.

4 BY MS. RATHKE:

5 Q. Were you answering a question,
6 sir?

7 A. She said something there. The
8 reporter said something. I was waiting.

9 Q. If you were answering a
10 question --

11 MR. HUNTER: Why don't we start
12 again?

13 A. Yeah, we were talking over one
14 another, I think, right there.

15 BY MS. RATHKE:

16 Q. Do you understand that your
17 brother, Duane Jones, and Mr. Couch were
18 communicating in a group in a text with
19 Mr. Miller of ACC in, let's say, August 2021?

20 A. It could be. I haven't seen that.

21 Q. Did you investigate this as part
22 of your duties as the corporate representative
23 for your company?

24 A. I asked about texts, and said he
25 didn't have any.

1 Q. Okay. You have access to what's
2 been marked as Exhibit 38 on your screen.
3 You're aware of that, correct? That's been
4 produced to you by ACC, correct?

5 A. I don't know about that.

6 Q. It's your testimony -- is it your
7 testimony that you have -- that ACC -- that
8 Exhibit 38 has not been produced to you?

9 A. I don't remember seeing that.

10 Q. How long did you take in preparing
11 for your deposition today?

12 A. Probably three or four hours.

13 Q. At what point in time?

14 A. Over the last week or so.

15 Q. And what did that preparation
16 consist of?

17 A. Reading over all the documents and
18 all the paperwork going back and forth.

19 Q. Okay. And those documents --

20 A. Yeah, I talked to -- talking to
21 the lawyers, also.

22 Q. The documents and paperwork that
23 you refer to did not include Exhibit Number 38?

24 A. I don't remember seeing that.

25 Q. All right. In Exhibit 38,

1 Mr. Miller asks, Can someone let me know what
2 the plan is? I was expecting loads of stoker
3 today.

4 Do you see that?

5 A. Yes, I see that.

6 Q. In response your brother states,
7 Sorry for the delay. Coal was just too wet to
8 load after all the rain. It is supposed to
9 continue tomorrow also. I have one load of
10 oversize I can send from London, but it's not
11 the greatest.

12 So let me start out by saying, what
13 is referred to -- what does London mean?

14 A. London's another -- just another
15 side of the loadout. There's one side of it --
16 basically the same place, but one side of the
17 loadout, the other side of the loadout.

18 Q. At Fire Star's facility?

19 A. Yes.

20 Q. And would the coal at -- on the
21 London side of the loadout, would that be the
22 same coal as from the plant in Hazard,
23 Kentucky?

24 A. Yes.

25 Q. What dictates whether coal goes to

1 one side or the other side of the loadout?

2 A. Say that again.

3 Q. What dictates whether coal is at
4 one side or the other side of the loadout?

5 A. Just different things as far as,
6 you know, how they're bringing it in, if trucks
7 are backed up or stopped up or just, you know,
8 operations.

9 Q. And so if the London -- if London
10 is one side of the loadout, what's the other
11 side loadout?

12 A. It's Manchester.

13 Q. Are there other sides?

14 A. No. I mean, that's basically it.
15 Just what we'd say London or we'd say
16 Manchester; still be Fire Star.

17 (Exhibit 39 was marked
18 for identification.)

19 BY MS. RATHKE:

20 Q. Do you see on your screen a
21 document that bears exhibit sticker number 39?

22 A. Yes.

23 Q. All right. And do you recognize
24 Exhibit 39 to be an email exchange between Neil
25 Miller, Mr. Couch, and your brother, Duane

1 Jones?

2 A. Yes. If the C and D is them, it
3 would be a text message, yes.

4 Q. Fair enough. All right.
5 Exhibit 39 continues Exhibit 38 and says -- on
6 September 1, Neil says, You are going to have
7 to send me coal. If it has to be wet stoker,
8 so be it. I can't let my inventory be depleted
9 to nothing. Please let me know approximate
10 tonnage you will ship me this week. Also, how
11 are we doing in the loader situation?

12 All right. My first question to you
13 is, were you aware that Mr. Miller was
14 communicating with your brother and Mr. Couch
15 about his need for more coal in September 2021?

16 A. He could have been sporadically,
17 you know, but most of the -- my understanding
18 was through Mike Wagner.

19 Q. What does -- he refers to the
20 loader situation. I assume that's at your
21 shop. What was the loader situation?

22 A. Loader is a piece of equipment.
23 So maybe we had loaders down, you know, broke
24 down for maintenance or...

25 (Exhibit 40 was marked

1 for identification.)

2 BY MS. RATHKE:

3 Q. All right. Do you see on your
4 screen a document that bears exhibit sticker 40
5 to your deposition?

6 A. Yes.

7 Q. All right. And do you see in
8 Exhibit 40 is email exchange between Mr. Miller
9 and your brother, Duane Jones?

10 A. I do see Duane on there, yes.

11 Q. All right. And I take it, kind of
12 like the other text messages, you were not
13 aware before your deposition today that
14 Exhibit 40 existed?

15 A. No, I haven't seen this.

16 Q. All right. Were you aware that on
17 or about September 2, 2021 your brother was
18 communicating via text to Mr. Miller, We will
19 only have stoker to ship until about the middle
20 or end of next week. I will let you know when
21 we get switched back to the oversize. Have a
22 great weekend and holiday.

23 A. Yes. What are you asking me
24 there?

25 Q. Did you know that your brother was

1 communicating with Neil Miller about coal
2 deliveries on September 2, 2021?

3 A. No. I assume it was sporadically.

4 Q. And what's the difference between
5 stoker and oversize?

6 A. Just sizing.

7 Q. And what size is stoker?

8 A. Stoker is more of a smaller.
9 Oversize can go anywhere from -- like basically
10 your-all's spec is a two-by-one. Stoker can be
11 the same size. They're a little different.

12 Q. And do both come from the same
13 plant in Hazard, Kentucky?

14 A. Yes.

15 Q. And what dictates which size you
16 get?

17 A. I don't understand that question.

18 Q. Like why do you sometimes have one
19 size, and why do you sometimes have the other
20 size?

21 A. Well, it could have been like the
22 one size could have been -- if we made up the
23 one size, it could have been soaked wet, too
24 wet like you saw earlier to ship. And we got
25 some here that didn't come out of the ground as

1 wet.

2 Q. Okay. And do you see where your
3 brother says, We should be able to get you two
4 loads a day, there on September 2, 2021?

5 A. I see where it says that, yeah.

6 Q. Okay. Hold on.

7 (Exhibit 41 was marked
8 for identification.)

9 BY MS. RATHKE:

10 Q. Okay. Do you see a document on
11 your screen bearing Exhibit Number 41?

12 A. Yes.

13 Q. And do you recognize Exhibit 41 to
14 be an email exchange between your brother and
15 Mr. Miller?

16 A. I do see Duane's name on there.

17 Q. Okay. Now, continuing in the
18 previous exhibit, your brother had said, We
19 should be able to get you two loads a day.
20 Then do you see where Mr. Miller responds, On
21 the days I run, I process over 100 tons. We
22 need to find another truck to help. I am in
23 kind of dire straits here. If anyone asks for
24 processed coal, I will be forced to say no, and
25 that is my responsibility to be the contingency

1 supplier.

2 Okay. First of all, were you aware
3 that in September 2021 Mr. Miller was
4 communicating with Mr. Jones that they were in, as
5 he puts it, dire straits, and needed more coal?

6 A. No. I mean, that would be -- like
7 I say, that was sporadic maybe for that day or
8 that week, but not on a continued basis, no.

9 Q. Okay. Did you know that in
10 September 2021 ACC was in dire straits for more
11 coal from you?

12 A. No. This text message right here,
13 no.

14 Q. Okay. That wasn't communicated to
15 you by your brother?

16 A. No. Like I say, he does the daily
17 operations.

18 Q. Okay. He says, K. Let me see
19 what I can do, but let me ask about this. He
20 says, We need to find another truck to help.

21 Is that something that Duane, your
22 brother, can do, find another truck to increase
23 deliveries?

24 A. It looks like Neil is saying that.
25 Maybe Neil was going to try to find another

1 truck or -- I'm not sure just what that means
2 there.

3 Q. Okay. And Neil also says, That is
4 my responsibility to be the contingency
5 supplier.

6 Do you know what contingency
7 supplier means in this context?

8 A. No, I do not.

9 Q. On September 25, your brother
10 texts Neil, Sorry for the delay. All I will
11 have the first part of the week is stoker. I'm
12 supposed to have a big pit towards the end of
13 the week.

14 What does that mean, I'm supposed
15 to have a big pit towards the end of the week?

16 A. That would be a pit of coal, like
17 a -- so much tonnage in a pit at the mine.

18 Q. Later in that text your brother
19 says, We are running short on all of our
20 customers.

21 Why was that the case in September
22 2021?

23 A. I'm not sure at that time. There
24 was so much going on with COVID, people calling
25 in sick and fuel and every -- every angle.

1 Q. So what does Fire Star do when it
2 is running short on its customers?

3 A. Well, you do the best you can do
4 during the middle of COVID. I don't know what
5 anybody can do.

6 (Exhibit 42 was marked
7 for identification.)

8 MR. HUNTER: Hey, Sarah.

9 MS. RATHKE: Yes.

10 MR. HUNTER: I asked you like 15
11 minutes ago if, when you came to a break, we could
12 talk logistics.

13 MS. RATHKE: Yeah, I kind of --

14 MR. HUNTER: And you didn't
15 acknowledge that.

16 MS. RATHKE: Right. I kind of -- I
17 kind of noticed this deposition for today, so this
18 is kind of what I want to do now. Also, I'm not
19 to a break. I'll let you know.

20 MR. HUNTER: Okay. So just so I'm
21 clear, you're not going to respond to my request
22 for --

23 MS. RATHKE: Yeah, you're right, I'm
24 not.

25 MR. HUNTER: To talk about

1 scheduling? Pardon me?

2 MS. RATHKE: We can do that a little
3 bit later, but right now I'm taking a deposition,
4 which I've noticed, and we have all these people
5 here and there's a witness and we're all taking
6 time. So I thought we would do the deposition,
7 then if you want to talk about scheduling, we can
8 do that.

9 MR. HUNTER: No, I didn't mean
10 scheduling for the future. I meant scheduling for
11 lunch and this afternoon, including when I should
12 tell Mr. Cotton to come. And my experience is,
13 just common courtesy, lawyers take a minute break
14 from their questioning when asked to do that. If
15 you're unable to do that, fine. But, again, I'm
16 asking you to do that.

17 MS. RATHKE: All right. Well, we
18 noticed Mr. Couch for 2:00 p.m., and that ought to
19 be when we take him. So that would be great.

20 MR. HUNTER: Were you planning on
21 allowing us to have a lunch break, or not?

22 MS. RATHKE: If you would like to
23 have a lunch break, that's fine, but I'm not yet
24 to a break. We haven't been even going an hour
25 since our last break. Do you think I could just

1 take this deposition, please?

2 MR. HUNTER: Yeah. I think the
3 record will show kind of the level of kind of
4 professionalism that's going on here. But, yes,
5 go ahead.

6 BY MS. RATHKE:

7 Q. Sir, do you see on your screen a
8 document that bears exhibit sticker number 42?

9 A. Yes.

10 Q. And do you recognize Exhibit 42 to
11 be an ACC purchase order dash 15 dated
12 September 10, 2021 in the amount of 700 tons of
13 coal?

14 A. Yes.

15 (Exhibit 43 was marked
16 for identification.)

17 BY MS. RATHKE:

18 Q. All right. Do you see on your
19 screen what's been marked as -- with an exhibit
20 sticker number 43 to your deposition?

21 A. Yes.

22 Q. And do you recognize Exhibit 43 to
23 be an email from Ms. Perkins to you dated
24 September 17, 2021, corresponding with ACC
25 purchase order dash 15? Sorry.

1 A. Yes.

2 Q. And do you recognize Ms. Perkins'
3 email at Exhibit 42 to reflect deliveries of
4 582.64 tons of coal between September 7 and
5 September 17, 2021?

6 A. Yes.

7 (Exhibit 44 was marked
8 for identification.)

9 BY MS. RATHKE:

10 Q. All right. Do you see a document
11 on your screen that bears exhibit sticker 44?

12 A. Yes.

13 Q. Do you recognize Exhibit 44 to be
14 a Fire Star invoice to ACC dated September 7,
15 2021, corresponding with ACC purchase order
16 dash 15?

17 A. Yes.

18 Q. All right. And fair to say
19 that Exhibit 44 would have been sent to ACC
20 after Ms. Perkins emailed weights to you in
21 Exhibit 43?

22 A. Yes.

23 (Exhibit 45 was marked
24 for identification.)

25 BY MS. RATHKE:

1 Q. All right. Do you see on your
2 screen a document that bears exhibit sticker
3 number 45?

4 A. Yes.

5 Q. And do you recognize Exhibit 45 to
6 be an ACC purchase order to Fire Star dash 16
7 dated September 17, 2021 ordering 700 tons of
8 coal?

9 A. Yes.

10 (Exhibit 46 was marked
11 for identification.)

12 BY MS. RATHKE:

13 Q. All right. Do you see a document
14 on your screen that bears a sticker number 46?

15 A. Yes.

16 Q. And do you recognize Exhibit 46 to
17 be a email from -- to include an email from
18 Ms. Perkins to you relating to ACC purchase
19 order dash 16 dated October 5, 2021?

20 A. Yes.

21 Q. And do you recognize Exhibit 46 to
22 be for a total of 277.05 tons of coal delivered
23 between September 21 and September 27, 2021?

24 A. Yes.

25 (Exhibit 47 was marked

1 for identification.)

2 BY MS. RATHKE:

3 Q. All right. Do you see on your
4 screen a document that bears exhibit sticker
5 number 47?

6 A. Yes.

7 Q. And do you recognize Exhibit 47
8 to be a Fire Star invoice dated September 21,
9 2022 [sic] pertaining to ACC invoice dash 16
10 for a total amount of 277.05 tons of coal?

11 A. Yes.

12 Q. And fair to say that Exhibit 47
13 would not have been sent out until you received
14 the weights set forth in Ms. Perkins' email
15 marked as Exhibit 46?

16 A. Yes.

17 (Exhibit 48 was marked
18 for identification.)

19 BY MS. RATHKE:

20 Q. Do you see on your screen a
21 document that bears exhibit sticker number 48?

22 A. Yes.

23 Q. And do you recognize Exhibit 48 to
24 be ACC purchase order dash 17 to Fire Star
25 dated October 5, 2021 in the amount of 700 tons

1 of coal?

2 A. Yes.

3 (Exhibit 49 was marked
4 for identification.)

5 BY MS. RATHKE:

6 Q. All right. Do you see a document
7 on your screen with an exhibit sticker 49?

8 A. Yes.

9 Q. Do you recognize Exhibit 49 to
10 include Ms. Perkins' email to you dated
11 October 28, 2021, corresponding to ACC purchase
12 order dash 17?

13 A. Yes.

14 Q. And do you see that is in the
15 amount of 711.28 tons delivered between
16 October 11 and October 28, 2021?

17 A. Yes.

18 (Exhibit 50 was marked
19 for identification.)

20 BY MS. RATHKE:

21 Q. Do you see a document on your
22 screen that bears exhibit sticker 50?

23 A. Yes.

24 Q. Do you recognize Exhibit 50 to
25 your deposition to be a Fire Star invoice dated

1 October 11, 2021, corresponding with ACC
2 purchase order number -- dash 17 in the amount
3 of 711.28 tons?

4 A. Yes.

5 Q. And fair to say Exhibit 50 would
6 have been sent only after receiving
7 Ms. Perkins' email to you containing weights
8 that was marked as Exhibit 49?

9 A. Yes.

10 (Exhibit 51 was marked
11 for identification.)

12 BY MS. RATHKE:

13 Q. Do you see on your screen a
14 document that bears exhibit sticker number 51?

15 A. Yes.

16 Q. Do you recognize Exhibit 51 to be
17 ACC's purchase order to Fire Star dash 18 dated
18 November 1, 2021 in the amount of 700 tons of
19 coal?

20 A. Yes.

21 (Exhibit 52 was marked
22 for identification.)

23 BY MS. RATHKE:

24 Q. All right. Do you see a document
25 marked on your screen with exhibit sticker 52?

1 A. Yes.

2 Q. Do you recognize Exhibit 52 to be
3 Ms. Perkins' email to you dated November 12,
4 2021, corresponding with ACC purchase order
5 dash 18?

6 A. Yes.

7 Q. And do you recognize Exhibit 52 to
8 be in the amount of 485.99 tons sent in
9 deliveries between November 2 and November 11,
10 2021?

11 A. Yes.

12 (Exhibit 53 was marked
13 for identification.)

14 BY MS. RATHKE:

15 Q. Do you see on your screen a
16 document that bears exhibit sticker number 53?

17 A. Yes.

18 Q. Do you recognize Exhibit 53 to
19 be a Fire Star -- Fire Star invoice dated
20 November 1, 2021 to ACC, corresponding with
21 ACC purchase order dash 18 in the amount of
22 485.99 tons?

23 A. Yes.

24 Q. And it's fair to say that this
25 Exhibit 53 would have been sent only after

1 receiving Ms. Perkins' email regarding weights
2 at Exhibit 52, correct?

3 A. Yes.

4 (Exhibit 54 was marked
5 for identification.)

6 BY MS. RATHKE:

7 Q. All right. Do you see on your
8 screen a document that bears exhibit sticker
9 number 54?

10 A. Yes.

11 Q. Do you recognize Exhibit 54 to be
12 ACC purchase order dash 19 to Fire Star dated
13 November 15, 2021 for 700 tons of coal?

14 A. Yes.

15 (Exhibit 55 was marked
16 for identification.)

17 BY MS. RATHKE:

18 Q. All right. Can you hear me?

19 A. Yes.

20 Q. Okay. Can you see a document with
21 an exhibit sticker Exhibit 55 on your screen?

22 A. Yes.

23 Q. Do you recognize Exhibit 55 to
24 be a December 1, 2021 email from Ms. Perkins
25 to you corresponding to ACC purchase order

1 dash 19?

2 A. Yes.

3 Q. And do you recognize Exhibit 55 to
4 pertain to 512.66 tons of coal delivered
5 between November 15 and November 19, 2021?

6 A. Yes.

7 Q. Do you see that Ms. Perkins also
8 says, Also, please be aware that we want our
9 coal sheds full now that we are heading into
10 bad winter weather and possible trucking
11 delays. Neil has expressed concerns that we
12 are not receiving enough coal deliveries to
13 fill our shed up. We need our deliveries
14 increased for the next two weeks to build up
15 our inventory.

16 Do you recall receiving this
17 communication from Ms. Perkins?

18 A. I mean, yeah, I see it there.
19 But...

20 Q. And what did you do in response to
21 that statement?

22 A. What did I do in response to that
23 statement? So this would have been for
24 December deliveries email. So I see where she
25 says was going to be shut down for two weeks

1 and -- so plant was closed for several days.

2 So...

3 Q. So what did you do in response to
4 the statement that I just read?

5 A. Well, we resumed our normal
6 shipments of five to six loads a week.

7 Q. Why didn't you increase the
8 shipments?

9 A. I don't get in -- like I said,
10 Mike Wagner's the one that basically called the
11 shots on how much coal you get, or Neil
12 sporadically text, or whatever.

13 Q. Okay. Do you see that Neil is
14 copied on Exhibit 55?

15 A. Yeah, I see that he was copied.
16 You know, like I said, that's not from Neil.

17 Q. Okay. So fair to say that --
18 well, strike that.

19 All right. Does the statement that I
20 read, particularly the part that says, Neil has
21 expressed concerns that we are not receiving
22 enough coal deliveries, does that refresh your
23 recollection that your brother, Duane, told you
24 that he was in communication with Neil about
25 increasing deliveries?

1 A. I mean, not at this time. This is
2 in December. The thing you showed me was back
3 like in September or something like that.
4 So...

5 Q. So -- so what?

6 A. So this was for a different time
7 period here, evidently. Looks like he's
8 talking about December here versus September.
9 So whether Duane had talked to him about that,
10 I do not know.

11 Q. Okay. We saw a previous exhibit
12 from Mr. Miller in September where he indicated
13 that he was in dire straits. Did you increase
14 shipments to ACC between September and December
15 of 2021?

16 A. We can look it up there. Looks
17 like they got pretty good shipments going in,
18 according to the four or five loads a week;
19 looks like we got pretty much to that.

20 (Exhibit 56 was marked
21 for identification.)

22 BY MS. RATHKE:

23 Q. Do you see a document on your
24 screen that bears exhibit sticker 56?

25 A. Yes.

1 Q. And do you recognize Exhibit 56 to
2 your deposition to be Fire Star invoice dated
3 November 15, 2021 that corresponds with ACC
4 purchase order dash 19?

5 A. Yes.

6 Q. All right. And fair to say that
7 Exhibit 56 would not have been sent out until
8 you received the weights set forth in
9 Ms. Perkins' email marked as Exhibit 55?

10 A. Yes.

11 (Exhibit 57 was marked
12 for identification.)

13 MR. HUNTER: Sarah, we're going to
14 lunch in five minutes.

15 MS. RATHKE: Okay.

16 MR. HUNTER: And, again, thank you
17 for your professionalism.

18 BY MS. RATHKE:

19 Q. All right. Do you see a document
20 on the screen marked Exhibit 57?

21 A. Yes.

22 Q. Do you recognize Exhibit 57 to be
23 text messages between Neil Miller and your
24 brother, Duane Jones?

25 A. I do see Duane's name on there.

1 Q. All right. Are you aware of
2 Neil's text dated November 17 to your brother
3 that says, Good morning, sir. I appreciate the
4 coal that you have been sending. It is very
5 nice and clean. This is my shed and we are
6 approaching winter quickly. Is there any way
7 that we can bump the volume up? That way the
8 boys aren't forced to come up here in order for
9 me to survive on bad weather days? They are
10 saying we are going to have a long colder than
11 average winter this year.

12 Were you aware that this text message
13 was sent by Neil in November 2021?

14 A. I haven't seen it, no.

15 Q. Okay. Were you aware that Neil
16 was communicating with your brother that he
17 needed more coal and that the deliveries were
18 not sufficient?

19 A. No.

20 (Exhibit 58 was marked
21 for identification.)

22 BY MS. RATHKE:

23 Q. All right. Do you see a document
24 bearing exhibit -- exhibit sticker 58 on your
25 screen?

1 A. Yes.

2 Q. All right. Do you recognize
3 Exhibit 58 to be a November 24, 2021 email
4 exchange between your brother and Neil Miller?

5 A. I do see Duane's name on there.

6 Q. All right. Were you aware that
7 November 24, 2021 Mr. Miller communicated to
8 your brother, My building is empty now?

9 A. No. It's about Thanksgiving day,
10 looks like, isn't it, pretty much.

11 Q. Were you aware that your brother
12 responded a couple hours later saying, We've
13 had production issues this week, plus the
14 Blevins truck is broke down?

15 What production issues is he
16 referring to?

17 A. I don't recall at that time.
18 November, it could have been anything. It
19 could have been weather, it could have been --
20 you're dealing with equipment. That's
21 breakdown possibility.

22 Q. Okay. And what does -- what is
23 the Blevins truck?

24 A. Blevins truck could be the guy's
25 name or something. I'm not sure.

1 Q. Okay. Were you aware that
2 Mr. Miller was communicating with your brother
3 about needing more coal on November 24, 2021?

4 A. No.

5 MS. RATHKE: All right. That
6 feels like that's been about five minutes.
7 Let's go off the record.

8 THE VIDEOGRAPHER: We're off the
9 record.

10 (Recess taken from 12:33 to 1:16.)

11 THE VIDEOGRAPHER: We're on the
12 record.

13 MS. RATHKE: All-righty.
14 (Exhibit 59 was marked
15 for identification.)

16 MS. RATHKE: All right. Oops. I
17 need to share my screen. Welcome back. How
18 was lunch?

19 MR. HUNTER: It was good. Thank you.

20 MS. RATHKE: Good. Good. Glad it
21 was.

22 BY MS. RATHKE:

23 Q. All right. Mr. Jones, can you see
24 on your screen a document that's been marked
25 Exhibit 59?

1 A. Yes.

2 Q. All right. And do you recognize
3 Exhibit 59 to be an ACC purchase order dash 20
4 dated December 1, 2021 to Fire Store in the
5 amount of -- Fire Star in the amount of 800
6 pounds of coal?

7 A. 800 tons, yes.

8 Q. All right. You're right as usual.
9 As usual, you're right.

10 (Exhibit 60 was marked
11 for identification.)

12 BY MS. RATHKE:

13 Q. All right. Do you see a document
14 on your screen now with an exhibit sticker
15 marked 60?

16 A. Yes.

17 Q. All right. Do you recognize
18 Exhibit 60 to be Ms. Perkins' email to you
19 dated December 17, 2021, corresponding to ACC
20 purchase order dash 20?

21 A. Yes.

22 Q. All right. And do you -- do you
23 see that it reflects shipments of 775.39 tons
24 of coal delivered between December 2 and
25 December 17, 2021?

1 A. Yes.

2 Q. All right. And that's getting
3 pretty close to the order; fair to say?

4 A. Orders for whatever ton, or what
5 was on that particular purchase order? Yes.

6 Q. Sorry. Seems like 800.

7 A. Yes.

8 Q. Okey-doke.

9 (Exhibit 61 was marked
10 for identification.)

11 BY MS. RATHKE:

12 Q. All right. And let me know when
13 you see on your screen a document with exhibit
14 sticker 61.

15 A. Yes.

16 Q. Do you recognize Exhibit 61 to be
17 a Fire Star invoice dated December 2, 2021 that
18 corresponds to ACC purchase order dash 20?

19 A. Yes.

20 Q. All right. And fair to say that
21 you could not have sent Exhibit 61 until you
22 received the weights set forth in Ms. Perkins'
23 email dated -- well, marked as Exhibit 60?

24 A. Yes.

25 Q. All right. Meanwhile...

1 (Exhibit 62 was marked
2 for identification.)

3 BY MS. RATHKE:

4 Q. Do you see a document on your
5 screen with exhibit sticker 62?

6 A. Yes.

7 Q. All right. And do you see on the
8 bottom half of the first page of Exhibit 62 an
9 e -- a text between Neil Miller and your
10 brother dated December 6, 2021?

11 A. I see pictures there, yeah.

12 Q. Okay. And Duane Jones is your
13 brother?

14 A. Yes.

15 Q. All right. And Mr. Miller says,
16 Current state. Give me a call, please.

17 Do you see that?

18 A. Yes.

19 Q. All right. Were you aware that
20 Mr. Miller was communicating to your brother in
21 early December 2021 that they were -- ACC
22 Archbold was still in need of coal?

23 A. No. I see where, you know, like I
24 say, sporadically. So far you've shown me half
25 a dozen days of that 365 days a year that's

1 been said.

2 Q. My question was, were you aware
3 that these communications were taking place?

4 A. No, I didn't see that. No.

5 Q. Would you expect your brother,
6 Duane, to communicate this to you, that he was
7 getting a couple texts a month from Neil asking
8 for more coal?

9 MR. HUNTER: Object to the form.
10 It's contrary to the evidence.

11 You can answer.

12 A. Oh, no. No, I wasn't aware. I
13 haven't seen a couple texts a month. I've seen
14 whatever, four or five so far a year's period.

15 BY MS. RATHKE:

16 Q. Okay. But the question was, would
17 you expect your brother to have told you about
18 those texts?

19 A. No. He handles the day-to-day.

20 (Exhibit 63 was marked
21 for identification.)

22 MS. RATHKE: It's thinking about it.

23 THE CONCIERGE: Counsel, sometimes a
24 quick refresh will push it through.

25 BY MS. RATHKE:

1 Q. All right. You see a document on
2 your screen with Exhibit 63?

3 A. Yes.

4 Q. All right. Do you recognize
5 Exhibit 63 to be ACC purchase order dash 21 to
6 Fire Star dated December 16, 2021?

7 A. Yes.

8 Q. And do you recall in December this
9 Exhibit 63 being sort of three separate orders
10 because somebody was going in for a medical
11 procedure?

12 A. I don't remember anything about a
13 medical procedure, no.

14 Q. Okay. Do you remember this
15 Exhibit 63 that contains three separate orders
16 at once?

17 A. Yeah, I see that. Yeah.

18 Q. Okay. Each for 800 tons?

19 A. That's what it says, yes.

20 Q. All right. All right. So I'm
21 just going to kind of -- there are sort of
22 three separate Rachel emails and three separate
23 invoices connected with these, so I'm just
24 going to walk through those as quickly as I
25 can.

1 (Exhibit 64 was marked
2 for identification.)

3 BY MS. RATHKE:

4 Q. All right. Do you see a document
5 with exhibit sticker 64 on your screen?

6 A. Yes.

7 Q. Do you recognize Exhibit 64 to be
8 a Ms. Perkins' email to you dated December 30,
9 2021, corresponding -- as being one of the
10 emails corresponding to ACC purchase order
11 dash 21?

12 A. Yes.

13 Q. All right. And do you see it
14 being for an amount -- a shipment amount of
15 399.45 tons of steel -- coal delivered between
16 December 21 and December 29, 2021?

17 A. Yes.

18 (Exhibit 65 was marked
19 for identification.)

20 BY MS. RATHKE:

21 Q. All right. Let me know when you
22 see an exhibit come up on your screen with a
23 sticker that says 65.

24 A. Yes.

25 Q. Do you recognize Exhibit 65 to be

1 a Fire Star invoice dated December 13, 2021,
2 corresponding to ACC purchase order dash 21 and
3 the quantity 399.45 tons that we just saw in
4 Ms. Perkins' email marked as Exhibit 64?

5 A. Yes.

6 Q. Fair to say that this Exhibit 65
7 would not have been sent until you received the
8 weights set forth in Ms. Perkins' Exhibit 64?

9 A. Yes.

10 (Exhibit 66 was marked
11 for identification.)

12 BY MS. RATHKE:

13 Q. All right. Can you see a document
14 on your screen with exhibit sticker 66?

15 A. Yes.

16 Q. Do you recognize Exhibit 66 to be
17 Ms. Perkins' email to you dated January 28,
18 2022 pertaining -- second email pertaining to
19 ACC purchase order dash 21?

20 A. Yes.

21 Q. And do you see that the total
22 amount is for 411.06 tons delivered between
23 January 3 and January 25, 2022?

24 A. Yes.

25 (Exhibit 67 was marked

1 for identification.)

2 BY MS. RATHKE:

3 Q. All right. Do you see a document
4 on your screen with an exhibit sticker number
5 67?

6 A. Yes.

7 Q. Do you recognize Exhibit 67 to be
8 a Fire Star invoice dated January 3, 2022
9 pertaining to ACC purchase order dash 21B in
10 the quantity of 411.06 tons?

11 A. Yes.

12 Q. And fair to say that you would not
13 have sent out Exhibit 67 until you received
14 Ms. Perkins' email regarding quantities in
15 Exhibit 66?

16 A. Yes.

17 MS. RATHKE: Oops. No sticker.
18 (Exhibit 68 was marked
19 for identification.)

20 BY MS. RATHKE:

21 Q. All right. Do you see on your
22 screen a document that bears exhibit sticker
23 68?

24 A. Yes.

25 Q. And do you recognize Exhibit 68 to

1 include Ms. Perkins' email to you dated
2 February 25, 2022 corresponding with ACC
3 purchase order dash 21C?

4 A. Yes.

5 Q. All right. And what she says is,
6 sorry for the delay. I've been working half
7 days from home as I recover from a surgery.

8 By any chance, does that refresh your
9 recollection about somebody having a medical leave
10 in February -- or, sorry -- in December and after
11 reading that these three invoices, purchase orders
12 were issued by ACC at once?

13 A. No. I don't remember that, no.

14 Q. Okay. Fair to say that Exhibit 68
15 sets forth deliveries in the total amount of
16 657.56 tons delivered between January 23,
17 January 31 -- sorry about that -- and
18 February 9, 2022?

19 A. Yes.

20 Q. All right.

21 (Exhibit 69 was marked
22 for identification.)

23 BY MS. RATHKE:

24 Q. All right. Do you see a document
25 on your screen that bears exhibit sticker 69?

1 A. Yes.

2 Q. Do you recognize Exhibit 69 to be
3 Fire Star invoice dated February 8, 2022
4 corresponding with ACC purchase order dash 21C?

5 A. Yes.

6 Q. All right. And fair to say that
7 Exhibit 69 would not have been sent out until
8 you received the weights set forth in
9 Ms. Perkins' email marked as Exhibit 68?

10 A. Yes.

11 Q. Great. Thank you for bearing with
12 me through that. All right.

13 (Exhibit 70 was marked
14 for identification.)

15 BY MS. RATHKE:

16 Q. You've corresponded with
17 Mr. Miller via email, correct?

18 A. I'm not sure.

19 Q. All right. Do you see a document
20 on your screen with exhibit sticker 70 on it?

21 A. Yes.

22 Q. Do you recognize Exhibit 70 to be
23 an email to you and others -- to you copying
24 others from Mr. Miller dated December 16, 2021
25 with the subject title Archbold's coal?

1 A. Archbold's coal, yes, I see that.

2 Q. All right. He says, Good morning,
3 Tim and Duane. I just wanted to let you know
4 that I need around 400 tons of coal every week
5 moving forward. The last week of December I'm
6 supplying Archbold, Albion, and Troy's needs of
7 ground coal.

8 Let me stop there.

9 Did you -- do you recall
10 responding in any way to Mr. Miller's email?

11 A. Basically told him we couldn't do
12 that. You know, we could supply for ACC for
13 Archbold, but not for -- wherever these other
14 plants are, I didn't know where they were.

15 Q. Was that in writing?

16 A. No. It's basically what we told
17 him.

18 Q. How did you tell him that?

19 A. Basically that our contract was
20 with Archbold, for the Archbold facility. You
21 know, we weren't to supply coal for, you know,
22 those other facilities. That wasn't our --
23 that wasn't our contract.

24 Q. Question was, how did you tell him
25 that?

1 A. Oh, we verbally told him that.

2 Q. Like in person?

3 A. Well, no, I'm sure it was over the
4 phone. He knew that we didn't ship it, and I
5 did discuss with Duane and Duane had told
6 him -- or told me that he had told him that,
7 you know, we were continuing to ship our five
8 or six loads a week like we always had, but,
9 you know, there's no extra coal for all these
10 other plants.

11 Q. Okay. So this is not a
12 conversation -- a phone conversation that you
13 had, it's one that your brother had, correct?

14 A. Right. But I was aware of this
15 email. I saw the email. Duane and I had that
16 conversation, you know, we can't supply -- we
17 can't supply coal for all these other plants.
18 That isn't in our contract. So I was aware of
19 the situation.

20 Q. Okay. So even though you received
21 an email containing these words, you did not
22 send an email back to the effect of what you
23 just stated, correct?

24 A. No. I didn't send it back, no.

25 (Exhibit 71 was marked

1 for identification.)

2 BY MS. RATHKE:

3 Q. Do you see a document on your
4 screen that has an exhibit sticker 71?

5 A. Yes.

6 Q. Do you recognize what's been
7 marked as Exhibit 71 to your deposition to be
8 email correspondence between you, Mr. Wagner,
9 and others, with a top email being dated
10 March 8, 2022 regarding fuel surcharge?

11 A. Yes, I see that.

12 Q. All right. And the first email
13 in this chain, do you recognize that to be a
14 March 7, 2022 email from you to Mr. Wagner and
15 others with the same subject title?

16 Sir?

17 MR. HUNTER: We're not hearing
18 anything. Is something --

19 MS. RATHKE: Can you hear me?

20 MR. HUNTER: We couldn't for like a
21 couple of minutes.

22 MS. RATHKE: Okay.

23 BY MS. RATHKE:

24 Q. Do you recognize the email that's
25 on the screen right now to be a March 7, 2022

1 email from you to Mr. Wagner and others
2 regarding fuel surcharge?

3 A. Yes.

4 Q. All right. You say, I hope you
5 are doing well. We have held off as long as
6 possible on a fuel surcharge on the deliveries
7 to Archbold, Ohio. As a result of the
8 historical increase in fuel prices, we are
9 having to adjust all rates to all accounts.

10 Okay. First of all, is that -- is
11 the statement accurate, did you impose a fuel
12 surcharge on 100 percent of your customers at this
13 time?

14 A. Yes.

15 Q. All right. Is it your
16 understanding that imposing a fuel charge on
17 ACC on March 7, 2022 was a modification of the
18 contract that existed between those parties?

19 A. No, what happened there was I
20 talked to Mike Wagner already and talked to him
21 verbally on the phone. He said, okay,
22 basically send me what you just said in an
23 email. So that's what you see right there. He
24 said, I think we can get something done because
25 we're having to pay -- you know, we're getting

1 fuel surcharges from everybody. I don't see
2 that there will be a problem.

3 Q. The question was --

4 A. That's what he told me.

5 Q. The question was, do you
6 understand that that was a modification of the
7 written contract between the parties?

8 A. Well, I'm not sure what you're
9 saying by modification. Would that change the
10 haul rate? Yes, it would.

11 Q. Okay. And Mr. Wagner responds to
12 you, Based on our separate phone calls, we
13 won't receive the coal unless we agree to the
14 fuel charge, leaving us no choice to agree to
15 it.

16 That was his position in response,
17 correct?

18 A. That's what he said. Like I say,
19 when we talked, he understood that everything
20 was going to -- they were having to get
21 surcharges from everybody, so he understood
22 that. I don't know that there was a
23 take-it-or-leave-it situation. You can see in
24 the email I said, you know, if you agree, you
25 agree; if you don't...

1 Q. Where does it say, if you agree,
2 you agree; if you don't, you don't?

3 A. It says, If you need to discuss
4 any more, please call me. Thank you for your
5 continued support.

6 Q. Okay. That's your interpretation
7 of that statement?

8 A. My interpretation is that was
9 saying if you've got -- you know, when you and
10 I talked on the phone, he didn't say there
11 would be a problem with it.

12 Q. If he had said no --

13 A. If he needs to discuss -- if he
14 need to discuss it any further, please give me
15 a call. The response was in the paperwork.
16 I'm sorry?

17 Q. If he had said no, would you have
18 continued to ship him coal?

19 A. I --

20 MR. HUNTER: Object to the form.

21 BY MS. RATHKE:

22 Q. I'm sorry?

23 A. He didn't say no.

24 Q. If he had said no --

25 A. Like I say, when we talked to

1 him -- when we talked to him, he was agreeable
2 to it.

3 Q. Did any of your customers say no?

4 A. No.

5 Q. If he had said no, would you have
6 continued to supply product?

7 MR. HUNTER: Object to the form.
8 Asked and answered, and calls for speculation.

9 You can answer.

10 A. I don't know. It didn't -- it
11 didn't get to the point where I had to think
12 about it because my conversation with him, he
13 didn't think it would be a problem.

14 (Exhibit 72 was marked
15 for identification.)

16 BY MS. RATHKE:

17 Q. Okay. Tell me when you see a
18 document with exhibit sticker 72 on your
19 screen.

20 A. Yes.

21 Q. Do you recognize Exhibit 72 to be
22 an ACC purchase order dash one dated March 8,
23 2022 to Fire Star for 800 tons of coal?

24 A. I can't see the dash one on there.
25 There's like a little screen blocking it or

1 something up there. I don't know if it's ours
2 or --

3 MR. HUNTER: It's ours.

4 THE WITNESS: Is it ours?

5 MR. HUNTER: Hold on.

6 MS. RATHKE: If I scroll a little or
7 maybe if I --

8 MR. HUNTER: We had something on our
9 screen.

10 A. Yeah, there it is.

11 BY MS. RATHKE:

12 Q. Okay. Okay. Fair enough? Did I
13 characterize accurately?

14 A. Yes. Dash one, yes.

15 Q. Okey-doke.

16 (Exhibit 73 was marked
17 for identification.)

18 MR. HUNTER: All right. We'll have
19 to skip Ms. Perkins' email this time.

20 BY MS. RATHKE:

21 Q. Do you see a document on your
22 screen with an exhibit sticker 73?

23 A. Yes.

24 Q. All right. Do you recognize
25 Exhibit 73 to be a Fire Star invoice dated

1 February 20, 2022 that corresponds to invoice
2 ACC purchase order dash one?

3 A. Yes.

4 Q. And is this the first invoice on
5 which you imposed the fuel surcharge?

6 A. Yes.

7 Q. Okay.

8 (Exhibit 74 was marked
9 for identification.)

10 BY MS. RATHKE:

11 Q. Okay. Do you see a document
12 on your screen with a sticker that says
13 Exhibit 74?

14 A. Yes.

15 Q. All right. Do you recognize
16 Exhibit 74 to be ACC purchase order dash two
17 dated March 28, 2022 for 800 tons of coal?

18 A. Yes.

19 Q. All right. Was there a time where
20 you started issuing or Fire Star started
21 issuing multiple invoices pertaining to MTI's
22 purchase orders?

23 A. The only thing I know of, we would
24 invoice against -- basically invoice against
25 Rachel's weights. Whatever she sent us, that

1 was what we invoiced against. Whether it was
2 against a different PO, I don't remember that.
3 But...

4 (Exhibit 75 was marked
5 for identification.)

6 BY MS. RATHKE:

7 Q. Okay. Do you see 75 on your
8 screen?

9 A. Yes.

10 Q. Do you recognize Exhibit 75 to
11 include an email from Ms. Perkins to you dated
12 April 8th, 2022 corresponding to ACC invoice
13 dash two?

14 A. Yes.

15 Q. And she says, Hi, Tim, Here is my
16 current list. Let me know if it matches yours.

17 In other words -- let me just ask
18 if that refreshes your recollection as -- did
19 you have a conversation with her or anybody
20 else at ACC where you talked about issuing
21 invoices more frequently than the duration
22 specified in the purchase order?

23 A. Yeah, we've asked -- we would ask
24 constantly to get weights quicker than what
25 they would send them to us.

1 Q. Okay.

2 A. Of course, they only want to do it
3 biweekly and invoice them all at one time for
4 us. So they'd only have one invoice against
5 it.

6 Q. Okay. And is --

7 A. Unless this list -- where she
8 missed an invoice -- or missed a ticket, I
9 guess, if that's what you're asking.

10 Q. Yeah. Well, no, I think -- so is
11 it accurate to say that Ms. Perkins started
12 issuing more frequent weights to you so that
13 you could issue more frequent invoices on your
14 request?

15 A. No. She never would do that. We
16 requested that. I actually, you know, even the
17 previous guy, I had asked him to do that, and
18 he said the plant just -- that was their way of
19 holding me a little bit, only send it to you a
20 little bit at a time to buy more time. So...

21 Q. I'm not sure I --

22 A. That -- the way you're showing it
23 there is basically for a two-week period also.
24 Basically all the -- all the loads are for a --
25 all the tickets, all the ticket numbers are for

1 a two-week period from her. That's all I could
2 get from her. They only wanted to do it every
3 two weeks.

4 Q. Okay. And do you agree that this
5 one corresponds to total shipments of 473.57
6 tons of coal delivered between March 23 and
7 April 7, 2022?

8 A. 3/23/22 and 4/7/22, yeah.

9 Q. Yeah. Okay. Then let me ask
10 about --

11 MS. RATHKE: Lauryn, I need ACC 1213
12 in the folder. I'll move on for now.

13 I also need ACC 1189 in the
14 folder, which is Fire Star invoice 5126 dated
15 March 23, 2022.

16 Let's return to this one, I guess.
17 (Exhibit 76 was marked
18 for identification.)

19 BY MS. RATHKE:

20 Q. Okay. I'm going to introduce the
21 next purchase order, which was actually the
22 last one that was performed on. All right. Do
23 you see a document with exhibit sticker 76 on
24 your screen?

25 A. Yes.

1 Q. Do you recognize that to be ACC
2 purchase order dash three to Fire Star dated
3 May 5, 2022 in the amount of 800 tons?

4 A. Yes.

5 Q. All right. This is another good
6 example. Okay.

7 (Exhibit 77 marked
8 for identification.)

9 BY MS. RATHKE:

10 Q. All right. Do you see a document
11 with a sticker 77 on your screen?

12 A. Yes.

13 Q. Do you recognize Exhibit 77 to
14 include Ms. Perkins' email to you dated May 10,
15 2021 [sic], corresponding with ACC purchase
16 order dash three?

17 A. Yes.

18 Q. All right. And do you see that
19 this is -- she says, Here's my list so far for
20 May. Looks like we have plenty of tons left on
21 this PO for the rest of the month.

22 Do you see that?

23 A. Yes.

24 Q. Okay. And this is in -- this
25 Exhibit 77 is in the amount of 403.75 tons

1 delivered between April 27 and May 9, 2022,
2 correct?

3 A. Yes.

4 Q. All right. This and the previous
5 month, which is pending, are the first month
6 where she -- first months where Ms. Perkins
7 submits you two weight lists per a purchase
8 order. Do you know why she did that?

9 A. She does it every two weeks. She
10 does it every other Friday. I assume that's
11 the same way they always did it; send me
12 weights every other Friday.

13 Q. All right. Fair enough. And in
14 that case, let me show you...

15 (Exhibit 78 was marked
16 for identification.)

17 BY MS. RATHKE:

18 Q. Do you see a document on your
19 screen with a sticker that says 78?

20 A. Yes.

21 Q. All right. And do you recognize
22 Exhibit 78 as Fire Star's invoice to ACC dated
23 April 27, '22, corresponding to P0 dash three
24 in the amount set forth in Ms. Perkins'
25 invoice, which was -- or email that was marked

1 as Exhibit 77?

2 A. Yes.

3 Q. Okay. And fair to say that this
4 Exhibit 78 would not have been sent until you
5 received the weights set forth in Ms. Perkins'
6 Exhibit 77?

7 A. Yes.

8 (Exhibit 79 was marked
9 for identification.)

10 BY MS. RATHKE:

11 Q. By the way, Ms. Perkins' emails to
12 you, did you search for these?

13 A. Say that again.

14 Q. When you were making a production
15 in this case, in this lawsuit, did you search
16 for emails between you and people at ACC?

17 A. Yes. From me and Rachel, yeah.

18 Q. Okay. And is it your belief that
19 you produced everything that -- did you keep
20 emails between you and Ms. Perkins?

21 A. Yes. As far as I know, yeah; sent
22 everything.

23 Q. Okay.

24 A. That one's kind of upside down
25 there, whatever that is, or sideways.

1 Q. Fair. Fair. And I don't know how
2 to rotate it, so we may just have to do our
3 best. But do you see a document on your screen
4 with exhibit sticker 79 on it?

5 A. Yes.

6 Q. All right. And if we zoom in sort
7 of carefully, do you recognize Exhibit 79 as
8 being an email from Ms. Perkins to you dated
9 June 1, 2022, corresponding with ACC purchase
10 order dash three?

11 A. Yes.

12 Q. All right. So a second -- this
13 would be a second email from her on that same
14 purchase order?

15 A. I mean, I'm not for sure.

16 Q. Well, if we look at -- so this is
17 dash three, right?

18 A. It could be -- she showing missing
19 ticket, missing ticket, missing ticket. It
20 could be she's going back and placing against
21 that purchase order.

22 Q. Okay.

23 A. See where she has missing ticket,
24 missing ticket?

25 Q. Yeah.

1 A. So it could be where she's
2 applying it back to the different --

3 Q. All right.

4 A. So I'm not sure.

5 Q. So Exhibit 77, which is her first
6 email on dash three, that goes between April 27
7 and May 9; fair enough?

8 A. Uh-huh, looks like.

9 Q. Yeah. So the 79, Exhibit 79, is
10 after that. These are all dates in May.

11 A. Uh-huh. Looks like, yeah.

12 Q. Do you know why there would be a
13 missing ticket?

14 A. Sometimes when they drop their --
15 it basically does, from my understanding, the
16 garage and whoever comes out and checks the
17 truck, maybe they don't turn in the ticket or
18 stick it in their pocket and walk off. I don't
19 know.

20 Q. Okay. Anyway, do you see that
21 Exhibit 79 sets forth deliveries in the total
22 amount of 191.24 tons delivered between May 3rd
23 and May 10, 2022?

24 A. Yeah, I see that.

25 (Exhibit 80 was marked

1 for identification.)

2 BY MS. RATHKE:

3 Q. All right. Do you see on your
4 screen a document with an exhibit label that
5 says 80?

6 A. Yes.

7 Q. And do you recognize Exhibit 80 to
8 be a Fire Star invoice to ACC dated May 10,
9 2022, corresponding with ACC purchase order
10 dash three in the amount stated in Ms. Perkins'
11 email that was marked as Exhibit 79?

12 A. Yes.

13 Q. All right. And fair to say that
14 you would not have sent out Exhibit 80 until
15 you had received Ms. Perkins' Exhibit 79?

16 A. Yes.

17 Q. All right. Now, you did inquire
18 by email as to some late payments after Fire
19 Star imposed the fuel surcharge on ACC,
20 correct?

21 A. Yeah, emails and phone calls,
22 correct.

23 Q. All right. So in that instance,
24 you did send emails. Why send emails rather
25 than just make phone calls in that instance?

1 A. Well, to the extent of that --
2 Dorothy Dreher, if I remember correctly, she's
3 the one that kind of handled -- you know, she's
4 been there for 40 years. She's the one that
5 kind of handled the incoming, outgoing
6 payables. I sent an email to her and sent one
7 to -- of course, talked to Mike Wagner. He
8 was -- you can see the emails. He was
9 knowledgeable of them being extremely late.

10 Q. Okay. And you also included
11 Mr. Miller on those emails, correct?

12 A. I'm not sure if Neil was or not.
13 Neil doesn't pay the bills, so I'm not sure
14 whether Neil was as far as me telling him. I
15 know Duane told him in May that they were way
16 behind. He knew that. And that we was going
17 to have to make some different, you know,
18 arrangements as far as going forwards since
19 they were so late behind, basically are in
20 default of the contract, at least until
21 assurance -- assurance for payment.

22 Q. Do you -- ah, shoot. All right.
23 The sticker isn't going on. I'll try one more
24 time.

25 (Exhibit 81 was marked

1 for identification.)

2 BY MS. RATHKE:

3 All right. There we go. Do you see
4 a document with exhibit sticker 81 on your screen?

5 A. Yes.

6 Q. All right. Now, Exhibit 81 you
7 recognize is an email exchange between you,
8 Ms. Dreher and others regarding P0 dash two
9 invoice 5126, Fire Star, correct?

10 A. Can you make that a little bit
11 bigger? It's like --

12 Q. I'm sorry.

13 A. It's fairly small. If that's
14 okay.

15 Q. Yeah. There you go.

16 A. Yeah, from Dorothy to, yeah, Mike
17 Wagner, myself --

18 Q. Okay.

19 A. -- and Neil Miller.

20 Q. All right. The email originates
21 with Ms. Perkins sending you some delivery
22 weights. But then Ms. Dreher emails you and
23 others on April 8, 2022 and says, Hello, I will
24 scan this invoice in for processing, however,
25 please see attached letter that supplies all

1 the information needing to start emailing all
2 future invoices directly to the AP system. I
3 will no longer accept current invoices through
4 my email.

5 All right. She told you that you
6 needed to follow a different procedure,
7 correct?

8 A. Right. I did that. That's
9 correct.

10 Q. All right. And then you reply
11 back on April 8th, Thank you, Dorothy. This is
12 the first time I have received this.

13 So fair to say that before
14 April 8th, you had not been following her
15 procedure?

16 A. I had done it for the last, you
17 know, so many years and sent it directly to
18 her, and she just sent me that to send it to a
19 different email, looks like.

20 Q. Right. Which you started doing
21 after April 8th, correct?

22 A. I mean, I'm not sure.

23 Q. Well, you say, Thank you, Dorothy.
24 This is the first time I have received this, on
25 April 8th.

1 So fair to say you started -- if
2 you correctly started following the new
3 procedure, you would have started doing that
4 after April 8th, 2022 and not before, correct?

5 A. If she sent me the correct --
6 right, she sent me the correct information to
7 bill them with, I could have done that sooner,
8 that's correct.

9 Q. Okay. All right. You follow up.
10 Let's see. All right. On May 10, it looks
11 like you escalate to Mr. Wagner. And at this
12 time you also copy in Mr. Miller.

13 Do you see that?

14 A. Yeah. They could have been --
15 that could have been in May where Duane was
16 talking to Neil and Duane basically telling him
17 we'll have to do some things different, you're
18 way behind. The way I remember that, so I
19 ended up cc'ing Neil on some stuff, so he was
20 aware they were way behind on payments.

21 Q. Okay. And the -- the explanation
22 that you're provided is given by Ms. Dreher on
23 May 13, 2022. She says, I found that there had
24 been approval to pay the fuel surcharge on
25 another invoice for the same PO, so I took it

1 upon myself to just process the invoices -- the
2 invoice. It will be paid next week.

3 Do you see that?

4 A. Yes.

5 Q. Did that seem reasonable to you?

6 A. Well, I mean, how far was it
7 behind already? That's one thing. So it took
8 me several -- looks like several days to get a
9 response. And then not getting paid until a
10 week later, that's a different story. So --

11 Q. Okay.

12 A. -- that doesn't -- you know, next
13 week, so I talked to her -- this happened on
14 Monday, for instance. I don't get paid till
15 could be two weeks later.

16 Q. At what point -- well, let's see.
17 (Exhibit 82 was marked
18 for identification.)

19 BY MS. RATHKE:

20 Q. All right. Do you see a document
21 on your screen with exhibit sticker 82?

22 A. Yes.

23 Q. All right. Do you recognize the
24 first top email in Exhibit 62 [sic] to be
25 one from Ms. Dreher to you and others dated

1 June 22 -- sorry -- June 7, 2022 indicating
2 that invoice 5133 was paid on June 2, 2022?

3 A. Yes.

4 Q. And did you verify that that
5 information was correct?

6 A. I'm not sure if she paid on that
7 day. They did eventually catch up with what
8 they owed us. Can you scroll that on down a
9 little bit to look here?

10 Q. Yeah, sure. Let me know where you
11 want it.

12 A. You're back up, would be fine.
13 Start -- I started off on May the 23rd and
14 didn't get a response till June the 6th, two
15 weeks later, three weeks later about whether I
16 was going to receive any money or not. That's
17 how it went.

18 Q. Okay. When did you make the
19 decision to stop making shipments to ACC?

20 A. Basically when they stopped -- you
21 know, they wouldn't get current with us. They
22 got to a point to where, you know, the banks --
23 remember, we borrow money, of course, for our
24 receivables, and, you know, this account is
25 behind. They're so many days behind. So you

1 got to do something, causing debts and not
2 being able to pay our vendors. So it basically
3 got to a point where we can't continue to ship
4 unless they get current, and, you know, of
5 course, the bank for us on different terms.

6 Q. Okay. After the invoices were
7 paid pursuant to Ms. Dreher's email, ACC placed
8 further purchase -- a further purchase order,
9 correct?

10 A. Yes. I remember seeing one, yes.

11 Q. Okay. Did you communicate with
12 them that you were not willing to ship them any
13 more because of the payment issue?

14 A. After they paid us, they sent us a
15 purchase order for like 25 -- something crazy,
16 2800 tons -- or not a purchase order, but
17 wanting or requesting 2800 tons. Of course, we
18 told them we couldn't do that. Then we --
19 previously in May we'd already told Neil Miller
20 and Mike Wagner in early June through those
21 discussions that, you know, we need the
22 assurance of payment going forward. And, of
23 course, Mike says, I think we can work
24 something out. And it went from that to, you
25 know, here's -- file a lawsuit against you.

1 Q. Okay. Let's test that.

2 (Exhibit 83 was marked

3 for identification.)

4 BY MS. RATHKE:

5 Q. All right. Do you see a document

6 on your screen with exhibit sticker 83?

7 A. No, I do not.

8 Q. How about now? You see it now?

9 A. Yes. Yes. Yes, I see it.

10 Q. Okay. Do you recognize Exhibit 3

11 [sic] being an email exchange between you and

12 Mr. Wagner with the most -- the latest email

13 being June 6, 2022?

14 Sir?

15 MR. HUNTER: Hold on one second. I

16 disconnected us.

17 MS. RATHKE: Oh.

18 MR. HUNTER: Sorry. I'm sorry.

19 Okay.

20 BY MS. RATHKE:

21 Q. Okay. Do you recognize Exhibit 83

22 to be email communications between you and

23 Mr. Wagner with the top one being from you

24 dated June 6, 2022?

25 A. Yes, I see that.

1 Q. All right. And in the second
2 email down, Mr. Wagner writes on June 6, Tim, I
3 gave you a call. I believe those invoices have
4 been resolved. How many tons are you planning
5 to ship this week?

6 Do you see that?

7 A. Yes.

8 Q. Your response is, I am on vacation
9 until mid next week. I have no idea what is
10 scheduled.

11 Why not tell him at that time that
12 you're not willing to ship because of the
13 payment issue?

14 A. Well, I'm literally on vacation at
15 the time. So I didn't have anything in front
16 of me. So my understanding is, he did give
17 Duane a call and Duane did tell him, you know,
18 about the first week of June, that was the
19 situation.

20 Q. Really?

21 (Exhibit 84 was marked
22 for identification.)

23 BY MS. RATHKE:

24 Q. All right. Do you see a document
25 on your screen marked Exhibit 84?

1 A. Yes.

2 Q. And do you recognize Exhibit 84 to
3 be text messages from -- between your brother
4 and Michael Wagner?

5 A. I see Duane's name on there. I'm
6 not sure if it's Mike Wagner or not. But,
7 yeah, I see Duane's name.

8 Q. Okay. All right. Mr. Wagner --
9 did you review Exhibit 84 in preparation for
10 your deposition today?

11 A. I don't remember seeing that.

12 Q. Mr. Wagner writes, Duane, I
13 checked and we are caught up on payments
14 yesterday. I'll send you a note, but are you
15 able to ship this week?

16 And do you see your brother says,
17 We won't have any this week. We will try and
18 get you some next week.

19 Why was that his response other --
20 rather than something, like you said, about
21 being concerned about payment?

22 A. Like I say, I was on vacation. I
23 assume I probably hadn't even talked to Duane
24 at that point in time so he could figure out
25 whether they had actually paid or not.

1 Q. Okay. Well, how about a couple
2 days later, then, when Wagner says, We're paid
3 up and our contract says 100 percent of our
4 requirements. We've agreed to the fuel
5 surcharge off contract. We need 100 percent of
6 our requirements. We'll send a note to this
7 effect.

8 And then two days later he says,
9 What are you all shipping right now? I'll send
10 a note, but our requirements are 300 tons for
11 next week.

12 And then he says, on the 14th,
13 What's our coal shipments looking like for this
14 week? And Duane's response dated June 14 is,
15 We are broke down at the tipple. We hope to
16 get back going tomorrow if we can get the parts
17 in. I'll let you know when we get running.

18 Why does he say that rather than we
19 need assurances of payment?

20 A. I mean, I don't know the exact
21 date that he told him -- that's what you're
22 asking me -- that he told him, you know, we
23 need assurance of payment, but that was told to
24 him.

25 Q. Okay.

1 A. Again, I'm on vacation during that
2 period, so I don't know what dates was what.

3 Q. On June 21 Mike says, You think
4 you'll ship Friday? And the response is, We
5 will try.

6 Why was that the response rather
7 than they needed assurance of payment?

8 A. I have no idea. Maybe Mike had
9 told him he would get assurance of payment. I
10 don't know that.

11 Q. When did you have the conversation
12 with your brother about needing assurances of
13 payment?

14 A. I was gone for most of June.

15 Q. Did you ever put your request for
16 assurances in payment in writing before the
17 lawyers got involved?

18 A. No. No. Just told Neil Miller --
19 and Neil was told and Mike Wagner was told.

20 Q. Who were they told by?

21 A. Duane.

22 Q. Were they ever told that by
23 yourself?

24 A. No. Like I said, I don't really
25 ever talk to Neil, and very rare talk to

1 Michael.

2 (Exhibit 85 was marked
3 for identification.)

4 BY MS. RATHKE:

5 Q. Okay. Do you see a document on
6 your screen with exhibit sticker 85?

7 A. Yes.

8 Q. Do you recognize Exhibit 85 to be
9 email communications between you -- involving
10 you, your brother, Mr. Miller, Aric Wentz, and
11 Mr. Wagner, top one being July 19, 2022?

12 A. Yes, I see that.

13 Q. All right. The string begins on
14 June 10th from Mr. Wagner to you and others
15 saying, Tim and Duane, Per our contract, the
16 100 percent requirements over the next four
17 weeks in Archbold will be 2391 tons of coal
18 that can be received between 6/13 and 7/13/22.

19 I'll let you read the rest of it.
20 But the question will be, you did not respond
21 to this email, correct?

22 A. No, I did not.

23 Q. Do you recall receiving the email
24 at the top of Exhibit 85 where Mr. Wagner
25 writes, Tim and Duane, We unfortunately

1 received no coal from you in June or month to
2 date. We've also tried to communicate with you
3 but have received no communication -- no
4 communication regarding our deliveries via
5 email, phone, or text.

6 Was that an accurate statement?

7 A. I mean, I don't know. I didn't
8 talk to him.

9 Q. All right. Did you respond to
10 this email that's -- the top email included in
11 Exhibit 85?

12 A. If I remember correctly, we got
13 this letter one day and got sued the next day,
14 pretty much. I don't know that there was a
15 whole lot of time to reply.

16 Q. So is the answer, no, you did not
17 reply?

18 A. Did not reply.

19 Q. Why did you not reply to the
20 June 10th email within Exhibit 85?

21 A. We were trying to figure out what
22 they're asking for 2391 tons of coal for. We
23 know Archbold wasn't -- we always shipped it
24 for so many years.

25 Q. Fair to say that your way of

1 trying to figure that out did not include
2 asking them?

3 A. We assumed they were -- they were
4 back in what they did in December, were going
5 to try to use our coal for other plants. Of
6 course, we felt that wasn't fair because
7 prices -- Archbold -- you know, 2391 is not a
8 legitimate number for Archbold. We just
9 figured they were using that to get more coal
10 off of us at a cheaper rate than they could
11 from anybody else.

12 Q. Fair to say that your reaction to
13 that did not include communicating with them?

14 A. No. Like I said, repeated, I
15 think they sued us within just a few days after
16 that, pretty close to that.

17 Q. They did not sue you within a few
18 days of June 10th, and that's what I'm asking
19 about. Fair to say your response --

20 A. You were showing me July.

21 MR. HUNTER: She's asking about
22 June.

23 A. Now you're asking about June 10.

24 BY MS. RATHKE:

25 Q. Yes, I am.

1 A. You showing July. So the way
2 you're asking about --

3 Q. Yes.

4 A. Yeah, as far as June 10th, no, I
5 did not respond back to that.

6 Q. All right. I'm going to go to the
7 coal supply agreement.

8 (Exhibit 86 was marked
9 for identification.)

10 BY MS. RATHKE:

11 Q. All right. Do you see on your
12 screen a document with exhibit sticker 86?

13 A. Yes.

14 Q. All right. And do you recognize
15 86 to be the coal supply agreement between Fire
16 Star and ACC for the term January 1, 2021
17 through December 31, 2022?

18 A. Yes.

19 Q. All right. And who negotiated
20 this on behalf of Fire Star? Was it you?

21 A. Yes.

22 Q. All right. Provision 2, Quantity,
23 says, 100 percent of the coal requirements for
24 the ACC plant located at 809 Myers Street,
25 Archbold, Ohio, 43502. These requirements are

1 estimated to be 18,000 tons for 2020.

2 All right. 18,000 tons for 2020, was
3 that consistent with previous purchases for
4 Archbold?

5 A. No. Archbold -- 10 to 12,000. 10
6 to 12,000 tons per year.

7 Q. Since when?

8 A. Forever. We shipped it for a long
9 time. Several years.

10 Q. Did you try to modify this
11 quantity provision in Exhibit 86 based on the
12 information that you just told me?

13 A. Well, I notice the -- just the
14 18,000 was off. That should have been 12.
15 That's for 2020, not for '21, '22. Should have
16 been 12,000.

17 Q. All right. What was the purchase
18 quantity for 2020?

19 A. For 2020, about 12,000 tons, maybe
20 10, give or take.

21 Q. Paragraph 12 governs termination
22 and indicates, Upon the occurrence of an event
23 of default, as to the defaulting party, the
24 other defaulting party -- the other party, the
25 non-defaulting party, may, in addition to

1 exercising any and all legal equitable rights
2 or claims, terminate this agreement by
3 providing written notice to the defaulting
4 party and the defaulting party fails to cure
5 such breach within 30 case after receiving such
6 notice.

7 Okay. Question for you is, did you
8 ever send a notice of default to ACC during the
9 term of the agreement?

10 A. No. They were told they were in
11 default. Told Mike Wagner they were in
12 default, they knew they were in default. As
13 far as us sending anything, no.

14 Q. Paragraph 16, Force Majeure. My
15 question for you on that one is, when you
16 negotiated the agreement, did you read and
17 understand this provision?

18 A. Yes.

19 Q. Did you have assistance of
20 legal counsel in negotiating and executing
21 Exhibit 86?

22 A. Yes.

23 Q. And can you be presumed to
24 understand the consequences of the agreements
25 that you sign on behalf of Fire Star?

1 A. Yes.

2 Q. Now, the -- about two-thirds of
3 the way down provision 16, force majeure says,
4 Any party claiming excuse from performance
5 under this section 14 will immediately notify
6 the other party of the force majeure event
7 prohibiting performance.

8 Did you ever send a notice of force
9 majeure event to ACC during the term of the
10 contract?

11 Sir, did you hear my question?

12 A. No, I didn't. You said retract.
13 I thought that's what you said.

14 THE WITNESS: Didn't she?

15 BY MS. RATHKE:

16 Q. No. I said -- I said, did you
17 ever send ACC a notice of force majeure event
18 during the term of the contract?

19 A. No. No, I did not.

20 Q. Then the clause 16 says, and will
21 confirm the same in writing within five
22 business days thereafter.

23 Did you ever send a confirmation of
24 notice of force majeure event to ACC under the
25 contract?

1 A. No.

2 Q. Okay. You indicated to me
3 previously that you are a broker and not a
4 producer of coal; is that correct?

5 A. Yes.

6 Q. Do you recall pitching ACC to
7 supply coal for -- or from a plant called Sandy
8 Ridge, at a location called Sandy Ridge?

9 A. No, I do not.

10 (Exhibit 87 was marked
11 for identification.)

12 THE WITNESS: Yeah.

13 BY MS. RATHKE:

14 Q. I'm sorry. I didn't ask a
15 question. What was yeah in response to?

16 A. Looking at this right here.

17 Q. Okay. All right. Do you see a
18 document on your screen labeled Exhibit 87?

19 A. Yes.

20 Q. And do you recognize Exhibit 87,
21 the top to be an email from you to somebody
22 named Mr. Grimes copying Mr. Wagner entitled
23 COA Fuel Coal Sandy Ridge?

24 A. Uh-huh.

25 Q. Okay. You say, Hi, Ben. I

1 appreciate you sharing with me your concerns
2 and thoughts. I would like to tell you a
3 little bit about Fire Star Energy. Our company
4 is the producer of coal. We are not a broker.

5 Since you've just indicated that
6 that is a false statement, why would you say
7 that, I wonder?

8 A. Producer, broker are real close
9 things. Producer is where you actually put
10 it -- you actually process the coal, change
11 sizes of it, that type of thing. A broker is
12 a -- it's -- you bought a finished product and
13 you broker the coal. So in that term, we are a
14 broker and we are a producer.

15 (Exhibit 88 was marked
16 for identification.)

17 MR. HUNTER: We're going to take a
18 five-minute break. We've been going an hour and a
19 half, and I need a break.

20 Do you have an idea how much
21 longer so I can tell Mr. Cotton -- Mr. Couch?

22 MS. RATHKE: Yeah. Could we -- I
23 only have five more minutes with this witness, so
24 could we do that and take a five-minute break?

25 MR. HUNTER: Sure. Sure.

1 MS. RATHKE: Okay. Great.

2 BY MS. RATHKE:

3 Q. Do you see a document on the
4 screen marked Exhibit 88?

5 A. Yes.

6 Q. All right. Do you recognize
7 Exhibit 88 to be Fire Star's responses to ACC's
8 discovery?

9 A. Yes.

10 Q. Okay. Did you assist in the
11 completion of this Exhibit 88?

12 A. Yes.

13 Q. You have not supplied a
14 verification in connection with Exhibit 88. Is
15 that because you are unwilling to attest to the
16 truth of the statements contained in your
17 interrogatory answers?

18 MR. HUNTER: Object to the form. You
19 know, most people would have pointed out that he
20 hadn't and asked for it to be supplied rather than
21 do that. But whatever. So I object to the form
22 of the question.

23 THE WITNESS: What's the question?

24 MR. HUNTER: Don't even worry about
25 it.

1 BY MS. RATHKE:

2 Q. Are you unwilling to attest to the
3 truth of the answers to your interrogatories?

4 MR. HUNTER: Same objection. He's
5 willing to attest to them, and if you had asked
6 me, we would have had it provided to you. I
7 thought he had done it. He can do it right now.

8 MS. RATHKE: I'm pretty sure it's not
9 an oral attestation.

10 MR. HUNTER: Well -- okay. We're
11 moving on. I'm instructing him not to answer on
12 the grounds of discourtesy.

13 MS. RATHKE: That sounds like a real
14 thing.

15 BY MS. RATHKE:

16 Q. Interrogatory 3 asks, Identify by
17 order date, order number, and amount of coal
18 being ordered every coal order made by ACC to
19 Fire Star.

20 Do you see that?

21 A. Yes.

22 Q. Okay. Your answer is, Construing
23 this request to the period of the agreement
24 sued upon in this case, Fire Star's producing
25 documents which reflect the information sought,

1 moreover, pursuant to the course of dealing
2 between the parties, Fire Star scheduled its
3 deliveries to coincide with the oral requests
4 provided by ACC to Fire Star's truckers or
5 direct to Fire Star.

6 Is that an accurate answer?

7 A. Yes.

8 Q. Okay. Number 7 asks about any and
9 all instances of commercial impracticability
10 and/or force majeure that you claim impacted
11 coal deliveries and/or supply to ACC, including
12 the nature of any and all such events, the
13 duration of any and all such events, and any
14 and all notices provided by Fire Star to ACC of
15 any and such events.

16 Your stated answer is, During the
17 last week of July, southeastern Kentucky
18 encountered extreme rainfall and devastating
19 flooding, resulting in at least 37 deaths, the
20 loss of thousands of homes, and very substantial
21 damage to roads, utility services, businesses, and
22 other infrastructure. With respect to the mine
23 from which Fire Star supplies ACC's coal, MSHA
24 1518781 in Cavies, Kentucky, that mine was
25 inaccessible due to the destruction, slash,

1 closure of the road accessing that mine. Kentucky
2 State Road 15 near the intersection with Kentucky
3 State Road 30 at Jackson, Kentucky. That road was
4 washed out beginning in late July and was not
5 reopened until early October 2022.

6 Is that a true statement?

7 A. Yes.

8 Q. Where do you get that information
9 from?

10 A. Which part of it?

11 Q. The part about the road being
12 washed out.

13 A. I know I sent information. You
14 can -- that's public knowledge there. Road was
15 washed up. You can look it up on Kentucky
16 Roads, Kentucky Emergency Services.

17 Q. Did you get that information from
18 your supplier?

19 A. Oh, yeah, they told us that. I
20 looked it up. You can punch it in on the
21 Internet and see where the road's washed out.
22 To my knowledge, it was closed for several
23 months.

24 (Exhibit 89 was marked
25 for identification.)

1 BY MS. RATHKE:

2 Q. All right. I'm going to show you
3 what I'll mark as Exhibit 89. Is Exhibit 89
4 the packet of information you provided us
5 showing the evidence of force majeure?

6 A. I assume that's what they provided
7 to you, yes.

8 Q. All right. Let's see here. And
9 does Exhibit 89 set forth 100 percent of the
10 information that you are using to support your
11 claim that State Road 15 was washed out for a
12 period of months?

13 MR. HUNTER: Object to the form.

14 BY MS. RATHKE:

15 Q. Sir?

16 MR. HUNTER: Do you have other
17 information beyond what's in that paper?

18 THE WITNESS: That's what happened
19 right there.

20 MR. HUNTER: But -- yeah, but she
21 wants to know if you have other information beyond
22 that.

23 THE WITNESS: Beyond the road being
24 closed down?

25 MR. HUNTER: No, beyond that piece of

1 paper. Like the fact the supplier told you.

2 A. Yeah, supplier told us. Again, I
3 mean, anybody in the area knows the roads are
4 shut down. I mean, it's common knowledge.
5 Supplier told us, it's common knowledge in the
6 area it was washed out.

7 BY MS. RATHKE:

8 Q. Okay. One of the things that you
9 provided is an article entitled Updated Eastern
10 Kentucky Road Closure. And that says,
11 Kentucky -- let me make this bigger for you.
12 Kentucky 15 at Panbowl Dam in Jackson will
13 remain closed to traffic at least Saturday as a
14 precautionary measure as record flood waters on
15 the north fork of the Kentucky River recede.
16 The road was closed at mile point 17.7 within
17 the city limits of Jackson between Lakeside
18 Drive and the Kentucky 15, Kentucky 30
19 intersection at 9:30 p.m. Thursday as a
20 precautionary measure as flood waters
21 threatened to overtop the highway embankment.
22 Water never did flood the highway before the
23 river crested during the overnight hours Friday
24 morning. The highway traverses Panbowl Dam.
25 The lake was impounded when this section of

1 Kentucky 15 was built in the early 1960s.

2 Kentucky 15 between Jackson and Hazard reopened
3 to traffic Friday morning.

4 That is a correct statement, correct?

5 A. I don't know about that. There
6 should be another -- there should be another
7 place where it actually shows another picture,
8 and it didn't open up until September of '22.

9 Q. Okay. Did you personally
10 observe --

11 A. Did --

12 Q. Did you personally observe the
13 road being out?

14 A. As far as me driving there, no, I
15 did not. We -- truckers come and go, and a
16 small area, everybody kind of knows.

17 Q. Did you place any orders from that
18 particular mine during the period of time when
19 you think that the highway was out?

20 A. They were telling us that the mine
21 was shut down, no need to place any orders.

22 Q. So is the shorter answer to my
23 question no?

24 A. What's your question?

25 Q. Did you place any orders during

1 the period of time when you thought that the
2 mine was shut down?

3 A. We already had an open order with
4 them, so...

5 Q. You follow the news -- did you
6 follow the news concerning the floods?

7 A. I mean, it was right in my face
8 down here. So people were dying and bodies
9 were floating middle of the road. Yes, you
10 kind of keep up with it.

11 (Exhibit 90 was marked
12 for identification.)

13 BY MS. RATHKE:

14 Q. Okay. Do you see a document on
15 your screen with exhibit sticker 19 [sic]?

16 A. Yes.

17 Q. All right. Article entitled KYTC
18 beginning repair -- repairs of flood-ravaged
19 roads?

20 A. Yes, I see that.

21 Q. Dated August 1. All right.
22 Article lists expected closures and delays. I
23 guess I should ask, did you see Exhibit 90 when
24 it was published?

25 A. Did I see Exhibit 90 when it was

1 published? You mean, that particular day?

2 Q. Well, did you see Exhibit 90 at
3 all? How about that? Did you see Exhibit 90
4 when you were -- when the news about the floods
5 was in your face, as you say?

6 A. Yeah. But that's -- like I say,
7 that's -- you're talking about a road here that
8 probably didn't go to the mine, so I don't
9 know -- you're talking about whatever this is.

10 Q. Okay. Here it says --

11 A. Just one -- not just one road in
12 the area.

13 Q. That's true. But your testimony
14 is that the road that was closed was Kentucky
15 State Road near the intersection with Kentucky
16 State Road 30. That road was washed out.
17 Correct? That's your sworn testimony, right?

18 A. That's what it says.

19 Q. So this 90, which you said you've
20 seen, which indicates all of the closed roads,
21 doesn't list Kentucky Road 15 or 30, correct?

22 A. We have one that does list it as
23 being closed, when it closed, when it reopened,
24 you know, what all these are. I guess this is
25 basically just showing how bad it was in the

1 area.

2 Q. All right. The document that you
3 produced --

4 A. We have one that says --

5 MR. HUNTER: Whatever.

6 THE WITNESS: Okay.

7 BY MS. RATHKE:

8 Q. The document that you produced
9 indicated that Highway 15 was closed briefly
10 and then reopened.

11 Do you see that?

12 A. Yeah, that's at that particular
13 location in Jackson.

14 Q. Right.

15 A. I guess that's what it says. But
16 it's a long road. I mean, it's --

17 Q. Well, this discusses between the
18 Kentucky 15 and Kentucky 30 intersection, as
19 does your interrogatory answer right here.
20 This is where you say, 15 and 30. Right?

21 A. Yeah, that's what that says, yes.

22 Q. All right. Is it your testimony
23 that there's no other way to access that mine?

24 A. Correct.

25 Q. And your testimony is that you had

1 decided, in any event, after ACC did not timely
2 pay invoices, that you weren't going to ship to
3 them any further anyway without adequate
4 assurances, correct?

5 A. Ask that again.

6 Q. Your testimony was that after ACC
7 did not timely pay invoices, you were not going
8 to ship any further to them anyway, correct?

9 A. I would say we would have shipped
10 to them again if they would provide accurate --
11 or assurance that they would pay us on time --
12 on a timely manner.

13 MS. RATHKE: No further questions for
14 you.

15 MR. HUNTER: Okay. We'll be back
16 in five minutes.

17 MS. RATHKE: I take it that means
18 Barry has no further questions and this
19 deposition's terminated.

20 THE REPORTER: Barry -- Barry,
21 would you like him to read and sign his
22 transcript?

23 MR. HUNTER: Yeah. Thank you.

24 (Deposition concluded at 2:55 p.m.)

25 * * *

1 COMMONWEALTH OF KENTUCKY :

: SS

2 COUNTY OF KENTON :

3

4 I, Patti Stachler, RMR, CRR, a Notary
5 Public within and for the Commonwealth of
6 Kentucky, duly commissioned and qualified,

7 DO HEREBY CERTIFY that the
8 above-named TIMOTHY M. JONES was by me first
9 remotely duly sworn to testify the truth, the
10 whole truth, and nothing but the truth.

11 Said testimony was reduced to
12 writing by me stenographically in the presence
13 of the witness and thereafter reduced to
14 typewriting.

15 I FURTHER CERTIFY that I am not a
16 relative or attorney of either party, in any
17 manner interested in the event of this action,
18 nor am I, or the court reporting firm with
19 which I am affiliated, under a contract as
20 defined in Civil Rule 28(D).

21

22

23

24

25

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IN WITNESS WHEREOF, I hereunto set my
hand and official seal of office at Covington,
Kentucky, this 24th of July 2023.

I, Patricia Stoll :ky
Notary Public - State at Large, for acts
performed in or outside Kentucky for
recordation in Kentucky; my commission expires:
May 11, 2024.

Veritext Legal Solutions
1100 Superior Ave
Suite 1820
Cleveland, Ohio 44114
Phone: 216-523-1313

July 27, 2023

To: Sarah K. Rathke, Esq.

Case Name: American Colloid Company v.

Fire Star Energy Resources, LLC

Veritext Reference Number: 5974141

Witness: Timothy M. Jones Deposition Date: 7/17/2023

Dear Sir/Madam:

Enclosed please find a deposition transcript. Please have the witness review the transcript and note any changes or corrections on the included errata sheet, indicating the page, line number, change, and the reason for the change. Have the witness' signature notarized and forward the completed page(s) back to us at the Production address shown

above, or email to production-midwest@veritext.com.

If the errata is not returned within thirty days of your receipt of this letter, the reading and signing will be deemed waived.

Sincerely,

Production Department

NO NOTARY REQUIRED IN CA

DEPOSITION REVIEW
CERTIFICATION OF WITNESS

ASSIGNMENT REFERENCE NO: 5974141

CASE NAME: American Colloid Company v.
Fire Star Energy Resources, LLC

DATE OF DEPOSITION: 7/17/2023

WITNESS' NAME: Timothy M. Jones

In accordance with the Rules of Civil
Procedure, I have read the entire transcript of
my testimony or it has been read to me.

I have made no changes to the testimony
as transcribed by the court reporter.

Date Timothy M. Jones

Sworn to and subscribed before me, a
Notary Public in and for the State and County,
the referenced witness did personally appear
and acknowledge that:

They have read the transcript;

They signed the foregoing Sworn
Statement; and

Their execution of this Statement is of
their free act and deed.

I have affixed my name and official seal

this _____ day of _____, 20____.

Notary Public

Commission Expiration Date

DEPOSITION REVIEW
CERTIFICATION OF WITNESS

ASSIGNMENT REFERENCE NO: 5974141

CASE NAME: American Colloid Company v.
Fire Star Energy Resources, LLC

DATE OF DEPOSITION: 7/17/2023

WITNESS' NAME: Timothy M. Jones

In accordance with the Rules of Civil
Procedure, I have read the entire transcript of
my testimony or it has been read to me.

I have listed my changes on the attached
Errata Sheet, listing page and line numbers as
well as the reason(s) for the change(s).

I request that these changes be entered
as part of the record of my testimony.

I have executed the Errata Sheet, as well
as this Certificate, and request and authorize
that both be appended to the transcript of my
testimony and be incorporated therein.

Date

Timothy M. Jones

Sworn to and subscribed before me, a
Notary Public in and for the State and County,
the referenced witness did personally appear
and acknowledge that:

They have read the transcript;

They have listed all of their corrections
in the appended Errata Sheet;

They signed the foregoing Sworn
Statement; and

Their execution of this Statement is of
their free act and deed.

I have affixed my name and official seal
this _____ day of _____, 20____.

Notary Public

Commission Expiration Date

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This image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

Date Timothy M. Jones
SUBSCRIBED AND SWORN TO BEFORE ME THIS _____
DAY OF _____, 20____.

Notary Public

Commission Expiration Date

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Federal Rules of Civil Procedure

Rule 30

(e) Review By the Witness; Changes.

(1) Review; Statement of Changes. On request by the deponent or a party before the deposition is completed, the deponent must be allowed 30 days after being notified by the officer that the transcript or recording is available in which:

(A) to review the transcript or recording; and

(B) if there are changes in form or substance, to sign a statement listing the changes and the reasons for making them.

(2) Changes Indicated in the Officer's Certificate. The officer must note in the certificate prescribed by Rule 30(f)(1) whether a review was requested and, if so, must attach any changes the deponent makes during the 30-day period.

DISCLAIMER: THE FOREGOING FEDERAL PROCEDURE RULES ARE PROVIDED FOR INFORMATIONAL PURPOSES ONLY.

THE ABOVE RULES ARE CURRENT AS OF APRIL 1, 2019. PLEASE REFER TO THE APPLICABLE FEDERAL RULES OF CIVIL PROCEDURE FOR UP-TO-DATE INFORMATION.

VERITEXT LEGAL SOLUTIONS

COMPANY CERTIFICATE AND DISCLOSURE STATEMENT

Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

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